6.2.4 C3 Exception Zones

Refer to Article 1.1.2.3 - Exception Zones and Exception Zone Schedules

6.2.4.1	Exception: C3-1	Map # 23, 25, 27, 35E, 35W, 40E, 46E, 49E, 50E, 53W, 59	By-law: 0265-2016, 0229-2018
In a C3-1 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.1.1	(1) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (1.1) **Truck Terminal** (1.2) **Waste Processing Station** (1.3) **Waste Transfer Station** (1.4) **Composting Facility**		
Regulation			
6.2.4.1.2	**Uses** contained in Sentence 6.2.4.1.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.2	Exception: C3-2	Map # 12	By-law: 0212-2015, 0229-2018, 0217-2023, 0199-2024

In a C3-2 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.2.1

(1) **Science and Technology Facility**
(2) Taxi or Courier Dispatching Centre
(3) **Repair Establishment**
(4) Live/Work Unit
(5) **Garden Centre**
(6) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:
  (6.1) **Truck Terminal**
  (6.2) **Waste Processing Station**
  (6.3) **Waste Transfer Station**
  (6.4) **Composting Facility**
(7) Asbestos products manufacturing legally **existing** on the date of passing of this By-law
(8) Cement manufacturing legally **existing** on the date of passing of this By-law
(9) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law
(10) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law
(11) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law
(12) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law
(13) Smelting or foundry operations legally **existing** on the date of passing of this By-law
(14) Solvent manufacturing legally **existing** on the date of passing of this By-law
(15) Tannery legally **existing** on the date of passing of this By-law
(16) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law
(17) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

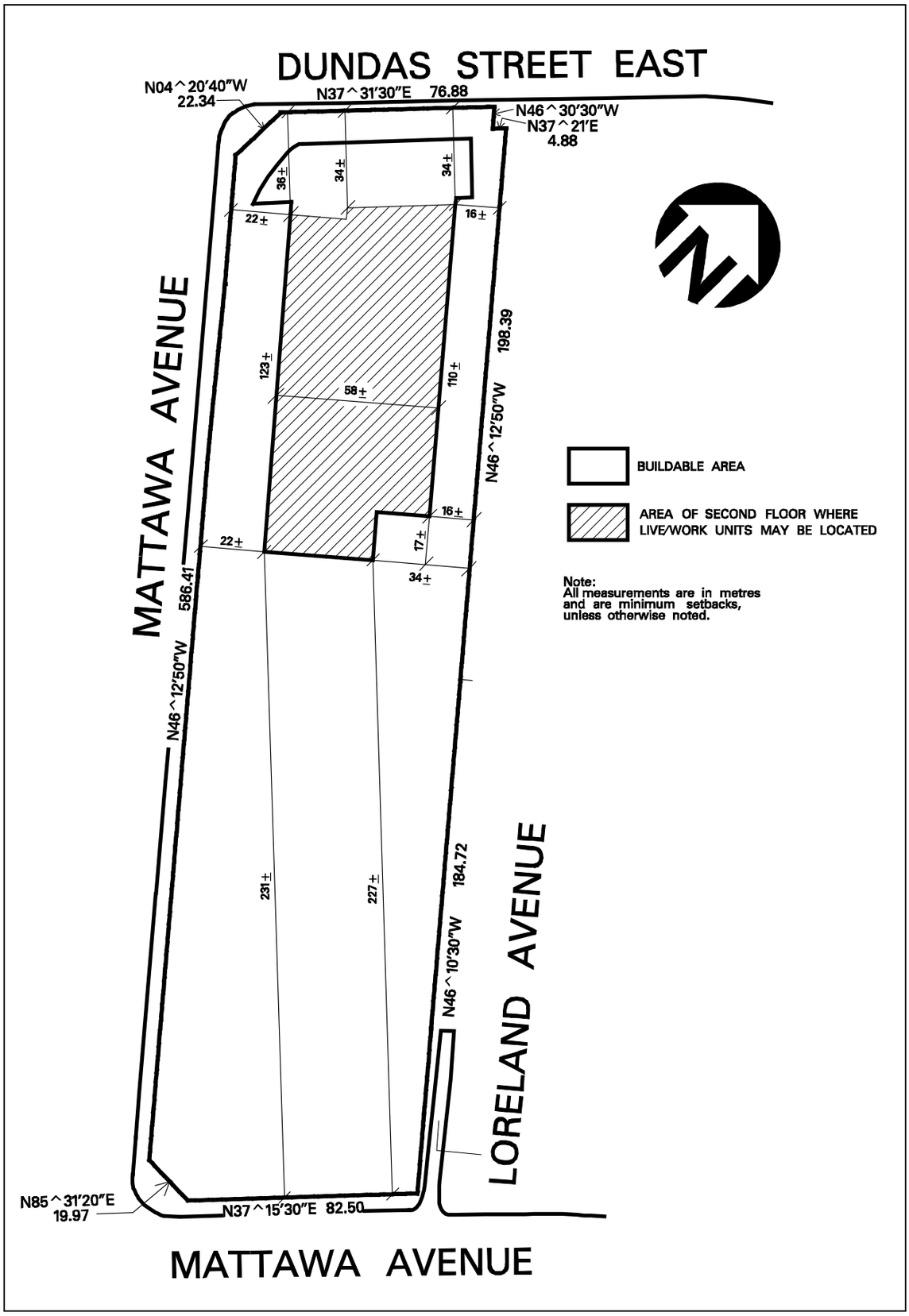
Uses Not Permitted

6.2.4.2.1A

(1) Asbestos Products Manufacturing
(2) Cement Manufacturing
(3) Gypsum or limestone processing and by-product manufacturing
(4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing
(5) Petroleum and coal refining and by-product manufacturing
(6) Phosphate or sulphur products and manufacturing
(7) Smelting or Foundry Operations
(8) Solvent Manufacturing
(9) Tannery
(10) Tar and Asphalt Manufacturing
(11) Motor Vehicle Wrecking Yard

Exception C3-2 continued on next page

6.2.4.2	Exception: C3-2	Map # 12	By-law: 0212-2015, 0229-2018, 0217-2023, 0199-2024
Exception C3-2 continued from previous page			
Regulations			
6.2.4.2.2	*deleted*		
6.2.4.2.3	Maximum combined **gross floor area - non-residential** and **gross floor area** - live/work units		24 030 m^2
6.2.4.2.4	Maximum **gross floor area - non-residential** for all **restaurants**, **convenience restaurants** and **take-out restaurants**		345 m^2
6.2.4.2.5	Maximum **gross floor area - non-residential** used for all **office uses**		8 300 m^2
6.2.4.2.6	Maximum **gross floor area** - live/work unit, includes all floor space of the live/work area identified on Schedule C3-2 of this Exception, measured from the exterior of outside walls, including any laundry facilities, storage lockers, elevators, hallways and indoor **amenity areas**		6 140 m^2
6.2.4.2.7	Maximum number of live/work units		42
6.2.4.2.8	A live/work unit shall only be permitted within the designated portion of the second floor of the **building** identified on Schedule C3-2 of this Exception		
6.2.4.2.9	The proprietor or principal occupant of the work component of a live/work unit shall be the principal occupant of the residential component of the live/work unit		
6.2.4.2.10	Minimum combined indoor **amenity area** for the live/work units that shall include but not be limited to, a party room and a fitness room		270 m^2
6.2.4.2.11	"Live/Work Unit" means a **dwelling unit** used for any purpose permitted by this Exception, and may include no more than one bedroom, or other area containing furnishings to accommodate rest or sleeping, provided that the work area shall be separated at all times from the bedroom or other sleeping area by a permanent, solid and wall-to-wall partition		
6.2.4.2.12	All site development plans shall comply with Schedule C3-2 of this Exception		



Schedule C3-2
Map 12

6.2.4.3	Exception: C3-3	Map # 04, 11	By-law: 0396-2009/ OMB Order 2010 May 17, 0297-2013, 0111-2019/ LPAT Order 2021 March 09, 0100-2024

In a C3-3 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Use Not Permitted

6.2.4.3.1 (1) **Convenience Restaurant**

Additional Permitted Uses

6.2.4.3.2
(1) **Convenience restaurant** legally **existing** on the date of passing of this By-law
(2) *deleted*
(3) *deleted*
(4) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:
- (4.1) **Transportation Facility**
- (4.2) **Truck Terminal**
- (4.3) **Waste Processing Station**
- (4.4) **Waste Transfer Station**
- (4.5) **Composting Facility**
- (4.6) Contractor Service Shop
- (4.7) **Adult Entertainment Establishment**
- (4.8) **Body-Rub Establishment**
- (4.9) **Truck Fuel Dispensing Facility**

Regulations

6.2.4.3.3	**Uses** contained in Sentence 6.2.4.3.2 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law	
6.2.4.3.4	Maximum area used for an accessory outdoor garden centre	1 355 m^2
6.2.4.3.5	Minimum **height** of fencing or screening surrounding an accessory outdoor garden centre	3.1 m
6.2.4.3.6	**Outdoor storage** of particulate materials such as but not limited to salt and sand shall be within enclosed containers, a **structure** with a minimum of three sides and a roof, or otherwise covered	

6.2.4.4	Exception: C3-4	Map # 12, 19	By-law: 0229-2018

In a C3-4 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.4.1

(1) **Garden Centre**

(2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:

- (2.1) **Motor Vehicle Service Station**
- (2.2) **Motor Vehicle Wash Facility - Restricted**
- (2.3) **Motor Vehicle Repair Facility - Restricted**
- (2.4) **Motor Vehicle Rental Facility**
- (2.5) **Outdoor Storage**
- (2.6) **Truck Terminal**
- (2.7) **Waste Processing Station**
- (2.8) **Waste Transfer Station**
- (2.9) **Composting Facility**
- (2.10) **Transportation Facility**

(3) Asbestos products manufacturing legally **existing** on the date of passing of this By-law

(4) Cement manufacturing legally **existing** on the date of passing of this By-law

(5) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law

(6) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law

(7) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law

(8) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law

(9) Smelting or foundry operations legally **existing** on the date of passing of this By-law

(10) Solvent manufacturing legally **existing** on the date of passing of this By-law

(11) Tannery legally **existing** on the date of passing of this By-law

(12) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law

(13) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

Uses Not Permitted

6.2.4.4.2

(1) **Motor Vehicle Sales, Leasing and/or Rental Facility - Restricted**

(2) Asbestos Products Manufacturing

(3) Cement Manufacturing

(4) Gypsum or limestone processing and by-product manufacturing

(5) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing

(6) Petroleum and coal refining and by-product manufacturing

(7) Phosphate or sulphur products and manufacturing

(8) Smelting or Foundry Operations

(9) Solvent Manufacturing

(10) Tannery

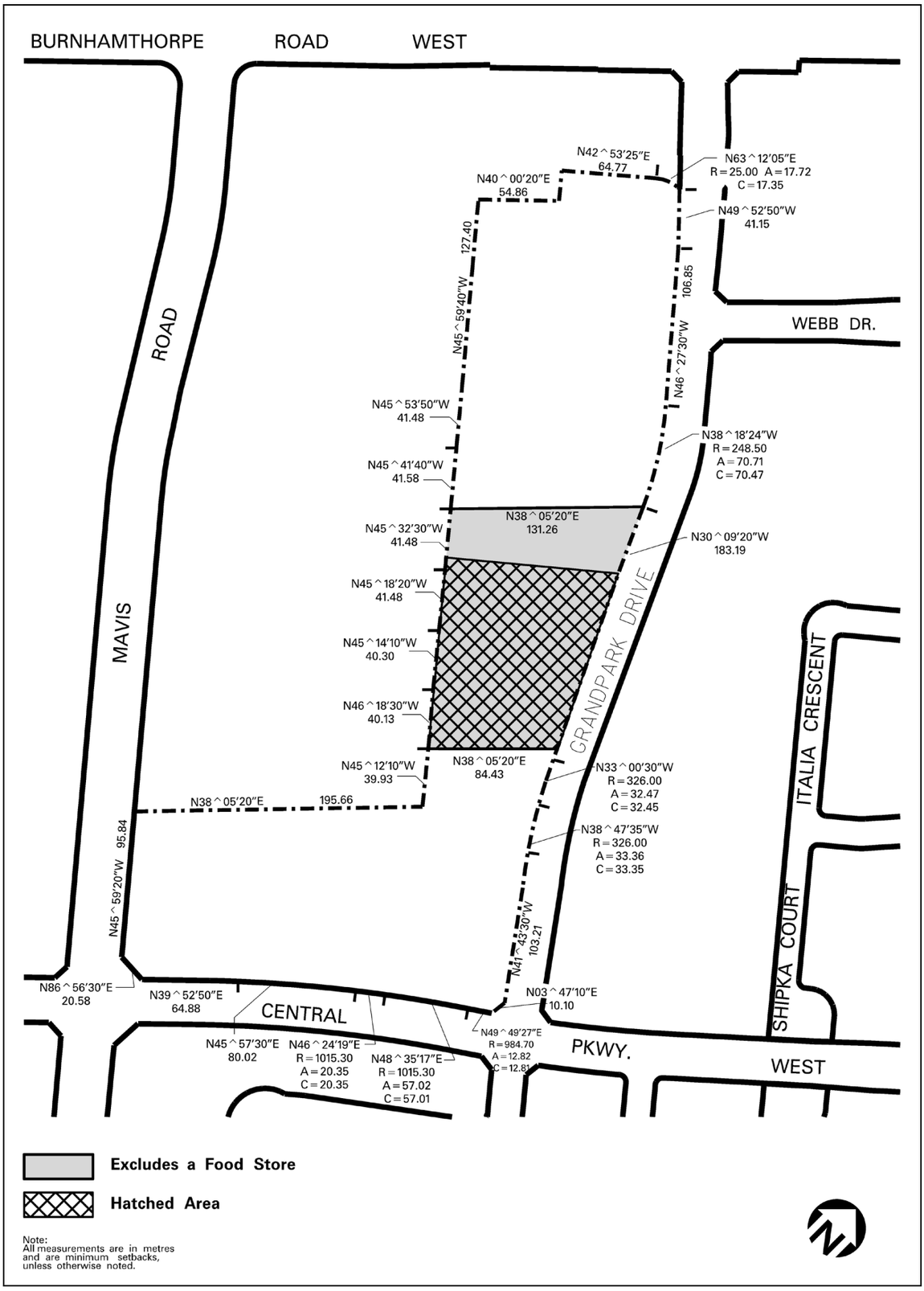
(11) Tar and Asphalt Manufacturing

(12) Motor Vehicle Wrecking Yard

Exception C3-4 continued on next page

6.2.4.4	Exception: C3-4	Map # 12, 19	By-law: 0229-2018
Exception C3-4 continued from previous page			
Regulation			
6.2.4.4.3	**Uses** contained in Clauses 6.2.4.4.1(1) and 6.2.4.4.1(2) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.5	Exception: C3-5	Map # 22	By-law: OLT Order 2022 July 12, 0100-2024
In a C3-5 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.5.1	(1) *deleted* (2) Self Storage Facility		
Regulations			
6.2.4.5.2	An outdoor patio accessory to a **restaurant, convenience restaurant** or a **take-out restaurant** shall only be located between a **building** and a **lot line** abutting Burnhamthorpe Road West, Central Parkway West or Mavis Road		
6.2.4.5.3	For the purposes of this By-law, **driveways**, **aisles**, and **parking spaces** are permitted to be shared with abutting lands zoned C4-17		
6.2.4.5.4	A food store shall not be located within the shaded area identified on Schedule C3-5 of this Exception		
6.2.4.5.5	A self storage facility shall only be located within the hatched area on Schedule C3-5 of this Exception		



Schedule C3-5
Map 22

6.2.4.6	Exception: C3-6	Map #	By-law: 0111-2019/ LPAT Order 2021 March 09, *deleted by 0157-2023/0125-2025*

6.2.4.7	Exception: C3-7	Map # 48W	By-law: 0379-2009, 0199-2024
In a C3-7 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.7.1	(1) Mobile Home		
Regulations			
6.2.4.7.2	Maximum number of mobile homes		24
6.2.4.7.3	"Mobile Home" means a **detached dwelling** that is designed to be made mobile, and constructed and manufactured to provide a permanent residence for one or more persons, but does not include a travel trailer or tent trailer otherwise designed		
6.2.4.7.4	*deleted*		

6.2.4.8	Exception: C3-8	Map # 37W	By-law:
In a C3-8 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.8.1	(1) **Garden Centre**		

6.2.4.9	Exception: C3-9	Map # 24	By-law: 0174-2015, 0174-2017, 0208-2022, 0217-2023, 0199-2024

In a C3-9 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Permitted Uses

6.2.4.9.1 Lands zoned C3-9 shall only be used for the following:

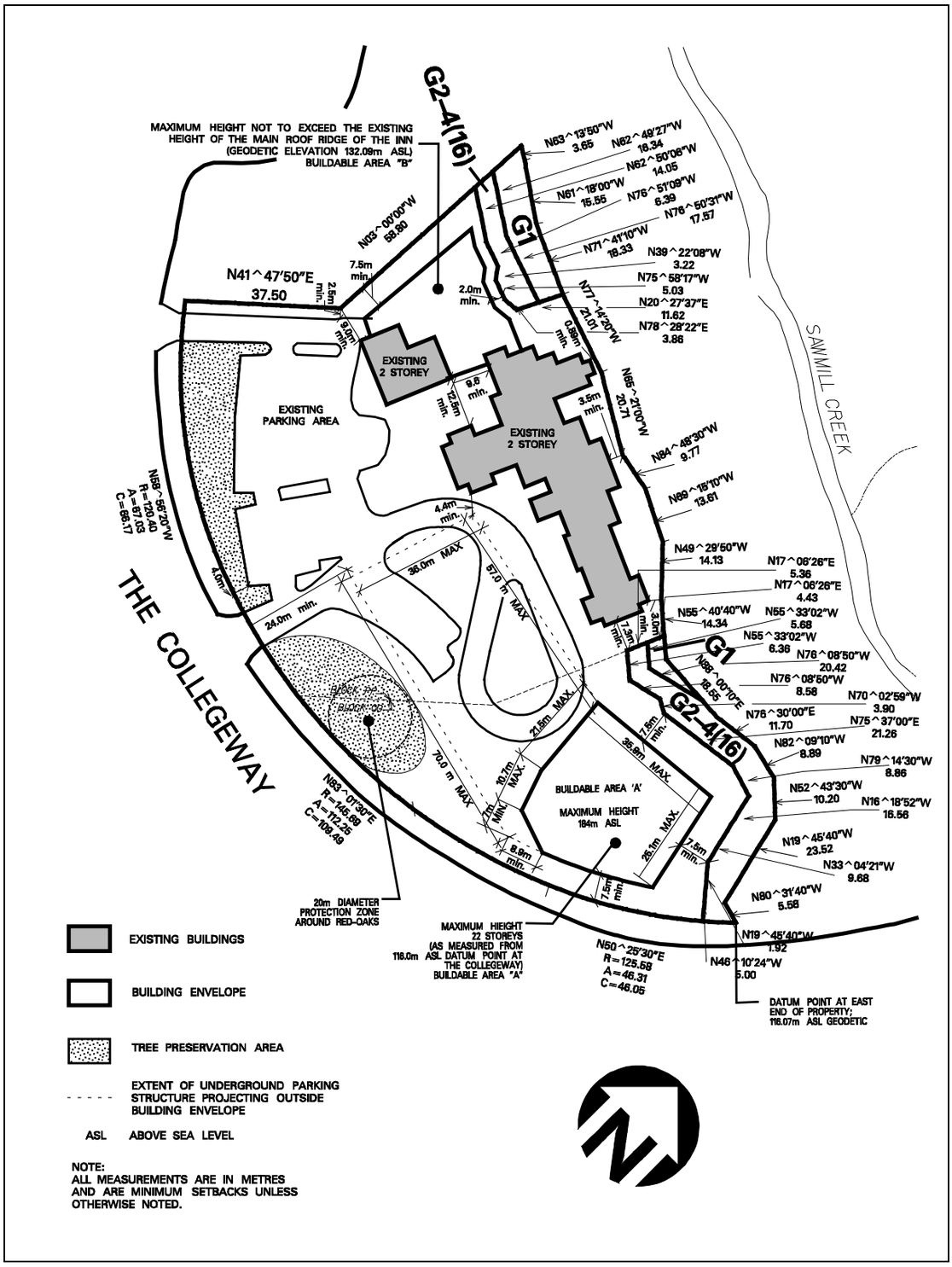
(1) **Overnight Accommodation**
(2) **Apartment**
(3) **Long-Term Care Building**
(4) **Retirement Building**
(5) **Accessory uses** to **overnight accommodation**
(6) **Accessory uses** to an **apartment** and **retirement building**
(7) *deleted*

Regulations

6.2.4.9.2	*deleted*	
6.2.4.9.3	The provisions contained in Subsection 2.1.14 of this By-law shall not apply	
6.2.4.9.4	The provisions contained in Subsection 4.1.15 of this By-law shall apply for any **apartment**, **long-term care building** or **retirement building**	
6.2.4.9.5	Maximum number of apartment **dwelling units**	79
6.2.4.9.6	Maximum number of **retirement dwelling units**	128
6.2.4.9.7	Maximum number of bedrooms - **overnight accommodation**	60
6.2.4.9.8	Maximum **gross floor area - non-residential** used for **overnight accommodation**	3 614 m^2
6.2.4.9.9	Maximum **floor space index - non-residential** used for **overnight accommodation**	0.27
6.2.4.9.10	Maximum **gross floor area - apartment zone**	16 015 m^2
6.2.4.9.11	Maximum **floor space index - apartment zone**	1.17
6.2.4.9.12	Notwithstanding the provisions contained in Subsection 4.1.15 of this By-law, maximum **height** of any **building**, **structure** or part thereof shall not exceed the **height** identified on Schedule C3-9 of this Exception, excluding mechanical penthouses and shall be measured from the datum point of 116.0 m above sea level for any **apartment**, **long-term care building** or **retirement building**	
6.2.4.9.13	Maximum encroachment of an uncovered or covered **balcony** and architectural features outside the building envelope	1.5 m
6.2.4.9.14	Retaining walls, stairwells, air vents and canopies may encroach outside the building envelope	
6.2.4.9.15	Maximum **height** of retaining walls located between **Buildable Area** 'A' and the **street line**	0.61 m
6.2.4.9.16	**Accessory uses** to **overnight accommodation** shall only include a **restaurant**, banquet hall, conference centre, hairdressing establishment, news stand, cigar and smoke shop, shoe repair shop, travel agency, **motor vehicle rental facility - restricted**, automatic banking machine, dry-cleaning depot, spa and recreational facility	

Exception C3-9 continued on next page

6.2.4.9	Exception: C3-9	Map # 24	By-law: 0174-2015, 0174-2017, 0208-2022, 0217-2023, 0199-2024
Exception C3-9 continued from previous page			
6.2.4.9.17	**Accessory uses** to an **apartment** and **retirement building** shall only include dining rooms, piano bar and games room associated with an outdoor terrace, putting green, health centre, crafts room, activity room, crafts kitchen, lounge, library, family room, movie theatre, beauty and spa rooms, recreational/exercise studios and a pool for the exclusive use of the residents of the **apartment** and **retirement building**		
6.2.4.9.18	Minimum width of an **aisle**		5.10 m
6.2.4.9.19	Parking shall not be required for the following **accessory uses** to **overnight accommodation**: **restaurant**, hairdressing establishment, news-stand, cigar and smoke shop, shoe repair shop, travel agency, **motor vehicle rental facility - restricted**, automatic banking machine, dry-cleaning depot and recreational facility directly related to the function of **overnight accommodation**		
6.2.4.9.20	**Parking structures** shall be located entirely below grade		
6.2.4.9.21	The shaded area identified on Schedule C3-9 of this Exception as 'Tree Preservation Area' shall only be used for landscape purposes and the preservation of existing trees and no **buildings** or **structures** of any kind, including **accessory buildings**, and no parking shall be erected or permitted within the tree preservation area		
6.2.4.9.22	All site development plans shall comply with Schedule C3-9 of this Exception except for parking		
Holding Provision			
	The holding symbol H is to be removed from **Buildable Area** 'B' of Exception C3-9 by further amendment to Map 24 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements: (1) delivery of a geotechnical report satisfactory to the City and to the Credit Valley Conservation Authority; (2) registration of a heritage easement under the *Ontario Heritage Act*, and; (3) grant of whatever consent may be required under the *Ontario Heritage Act* as amended, by City **Council**.		



Schedule C3-9
Map 24

6.2.4.10	Exception: C3-10	Map # 37W	By-law:
In a C3-10 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.10.1	(1) **Garden Centre** (2) Accessory **Motor Vehicle Repair Facility - Restricted**		
Regulations			
6.2.4.10.2	Maximum **gross floor area - non-residential** used for an upper level racking system		1 620 m^2
6.2.4.10.3	Maximum **height** of all materials stored and displayed in a **garden centre**		3.0 m
6.2.4.10.4	Shared **driveways** and parking **aisles** are permitted with the abutting lands zoned C3-11		

6.2.4.11	Exception: C3-11	Map # 37W	By-law: 0379-2009, 0212-2015, 0100-2024
In a C3-11 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.11.1	(1) **Garden Centre** (2) *deleted* (3) Motor Vehicle Retail Store		
Regulations			
6.2.4.11.2	**Uses** contained in Sentence 6.2.4.11.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.11.3	Minimum setback to Mavis Road		7.5 m
6.2.4.11.4	Maximum **height** of all materials stored and displayed in a **garden centre**		3.1 m
6.2.4.11.5	Minimum **height** of fencing or screening surrounding an outdoor display and sales area of a **garden centre**		3.1 m
6.2.4.11.6	Shared **driveways** and parking **aisles** are permitted with the abutting lands zoned C3-10		
6.2.4.11.7	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.11.10 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.11.10 of this Exception		
6.2.4.11.8	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.11.11 and 6.2.4.11.12 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a motor vehicle retail store		

Exception C3-11 continued on next page

6.2.4.11	Exception: C3-11	Map # 37W	By-law: 0379-2009, 0212-2015, 0100-2024

Exception C3-11 continued from previous page

6.2.4.11.9 Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.11.11 and 6.2.4.11.12 of this Exception, and the following:

The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The parking requirement for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.11.11 and 6.2.4.11.12 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.11.7 of this Exception

Table 6.2.4.11.10

Column 1	**Column 2**
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Table 6.2.4.11.11

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Industrial/**Office/ Medical Office**	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Exception C3-11 continued on next page

6.2.4.11	Exception: C3-11	Map # 37W	By-law: 0379-2009, 0212-2015, 0100-2024

Exception C3-11 continued from previous page

Table 6.2.4.11.12

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Industrial/**Office/ Medical Office**	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.11.13 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.12	Exception: C3-12	Map # 21	By-law: 0212-2015, *deleted by LPAT Order 2019 February 08*, 0100-2022

In a C3-12 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

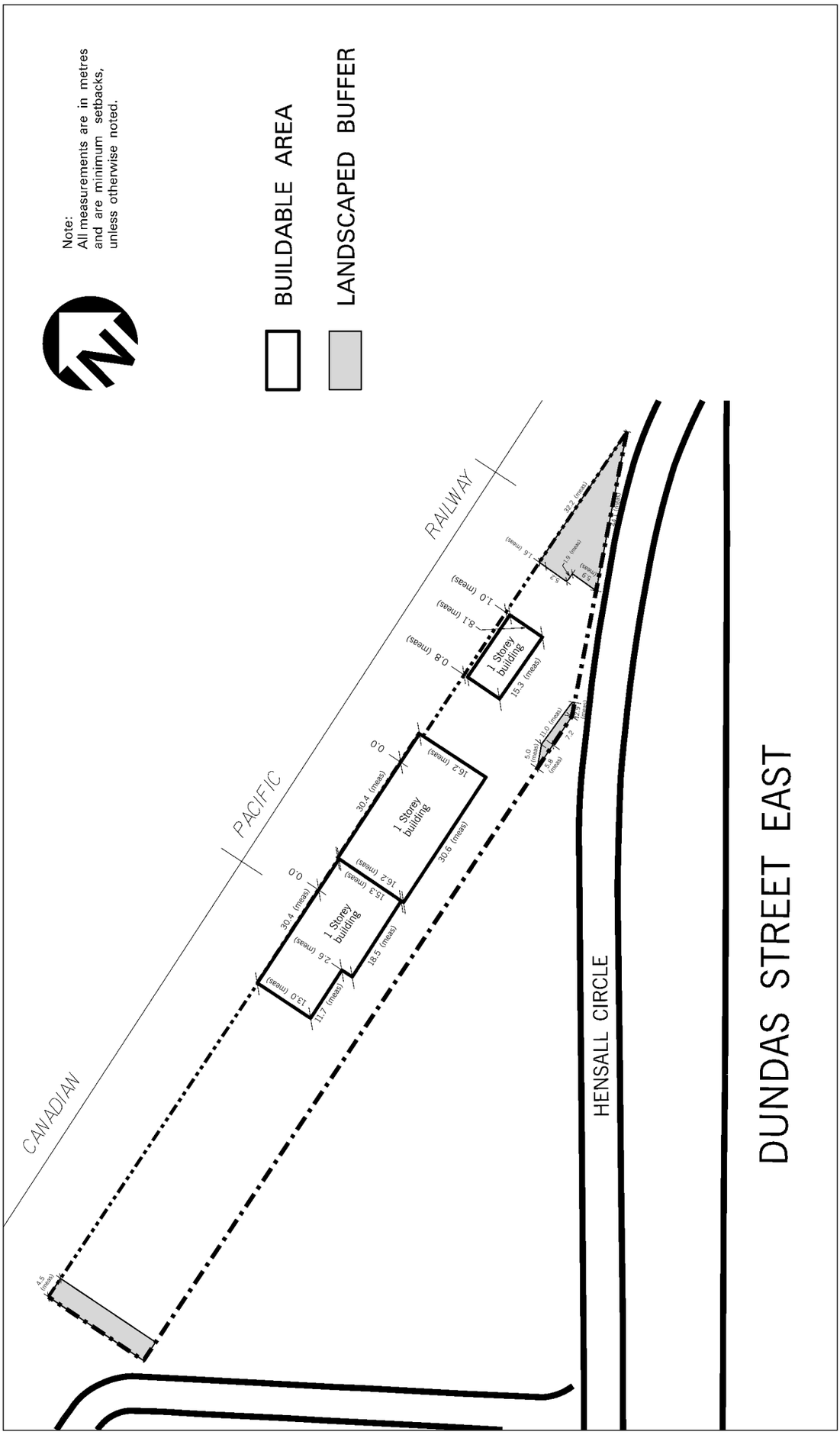
Permitted Uses

6.2.4.12.1 Lands zoned C3-12 shall only be used for the following:

(1) **Retail Store**
(2) **Motor Vehicle Sales**, **Leasing and/or Rental Facility - Commercial Motor Vehicle**
(3) **Motor Vehicle Sales**, **Leasing and/or Rental Facility - Restricted**
(4) **Motor Vehicle Rental Facility**
(5) **Take-out Restaurant**
(6) **Veterinary Clinic**
(7) **Service Establishment**
(8) **Commercial School**
(9) **Repair Establishment**
(10) **Office**
(11) **Motor Vehicle Wash Facility - Restricted**
(12) **Motor Vehicle Repair Facility - Restricted**
(13) Self Storage Facility
(14) Contractor Service Shop

Regulations

6.2.4.12.2	Minimum number of **parking spaces** per 100 m^2 of **gross floor area - non-residential** for **uses** contained in Sentence 6.2.4.12.1 of this Exception	4.1
6.2.4.12.3	All site development plans shall comply with Schedule C3-12 of this Exception	



Schedule C3-12
Map 21

6.2.4.13	Exception: C3-13	Map # 13	By-law: 0229-2018, 0100-2024

In a C3-13 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.13.1

(1) *deleted*

(2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:

(2.1) **Truck Terminal**

(2.2) **Waste Processing Station**

(2.3) **Waste Transfer Station**

(2.4) **Composting Facility**

(3) Off-track wagering establishment accessory to a **restaurant**

(4) Asbestos products manufacturing legally **existing** on the date of passing of this By-law

(5) Cement manufacturing legally **existing** on the date of passing of this By-law

(6) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law

(7) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law

(8) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law

(9) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law

(10) Smelting or foundry operations legally **existing** on the date of passing of this By-law

(11) Solvent manufacturing legally **existing** on the date of passing of this By-law

(12) Tannery legally **existing** on the date of passing of this By-law

(13) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law

(14) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

Uses Not Permitted

6.2.4.13.1A

(1) Asbestos Products Manufacturing

(2) Cement Manufacturing

(3) Gypsum or limestone processing and by-product manufacturing

(4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing

(5) Petroleum and coal refining and by-product manufacturing

(6) Phosphate or sulphur products and manufacturing

(7) Smelting or Foundry Operations

(8) Solvent Manufacturing

(9) Tannery

(10) Tar and Asphalt Manufacturing

(11) Motor Vehicle Wrecking Yard

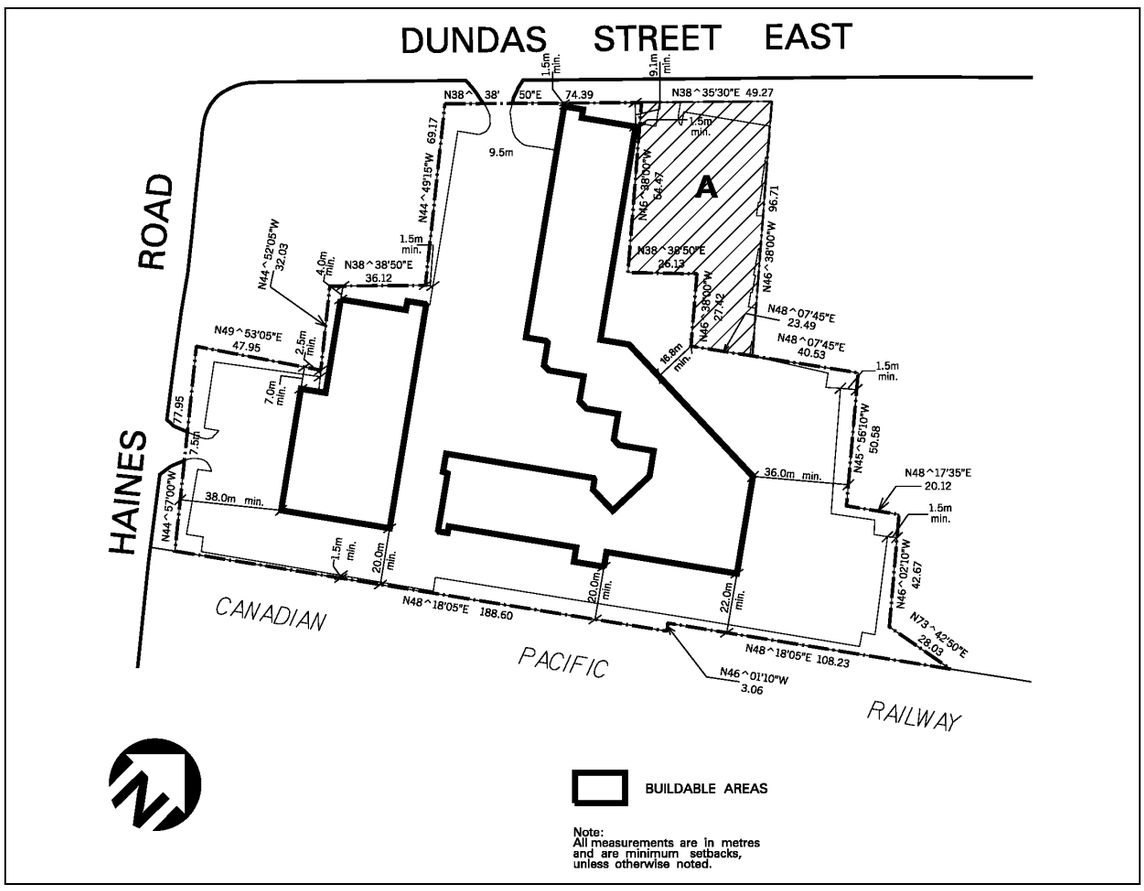
Regulations

6.2.4.13.2 **Uses** contained in Clauses 6.2.4.13.1(1), 6.2.4.13.1(2) and 6.2.4.13.1(3) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law

6.2.4.13.3 Maximum **gross floor area - non-residential** 10 510 m^2

Exception C3-13 continued on next page

6.2.4.13	Exception: C3-13	Map # 13	By-law: 0229-2018, 0100-2024
Exception C3-13 continued from previous page			
6.2.4.13.4	Maximum **gross floor area - non-residential** used for an outdoor patio accessory to a **restaurant**		130 m^2
6.2.4.13.5	Maximum number of outdoor patios accessory to a **restaurant**		1
6.2.4.13.6	Required **parking spaces**		710
6.2.4.13.7	Lands identified as Area 'A' on Schedule C3-13 of this Exception will only be used for **motor vehicle** parking		
6.2.4.13.8	Maximum number of **parking spaces** to be provided in Area 'A' as identified on Schedule C3-13 of this Exception		132
6.2.4.13.9	All site development plans shall comply with Schedule C3-13 of this Exception		



Schedule C3-13
Map 13

6.2.4.14	Exception: C3-14	Map # 59	By-law: 0174-2017
In a C3-14 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.4.14.1	Lands zoned C3-14 shall only be used for the following: (1) **Retirement Building**		

6.2.4.15	Exception: C3-15	Map # 23	By-law: 0358-2007
In a C3-15 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.15.1	(1) **Motor Vehicle Body Repair Facility** (2) **Outdoor storage** accessory to a **motor vehicle body repair facility** (3) **Vehicle Pound Facility**		
Regulations			
6.2.4.15.2	**Outdoor storage** accessory to a **motor vehicle body repair facility** shall not be situated closer to any **street line** than any portion of the main **building**		
6.2.4.15.3	**Outdoor storage** of vehicles or property secured within a **vehicle pound facility** shall not be situated closer to any **street line** than any portion of the main **building**		
6.2.4.15.4	A fence having a minimum **height** of 1.8 m shall be required around the perimeter of the area to be used for **outdoor storage** for a **vehicle pound facility**, but in no event shall the fence be situated closer to any **street line** than any portion of the main **building**		

6.2.4.16	Exception: C3-16	Map # 23	By-law: 0229-2018, 0208-2022

In a C3-16 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.16.1

(1) **Garden Centre**
(2) Outdoor **garden centre** accessory to a **retail store**
(3) Uses permitted within the E2 zone in Subsection 8.2.1 except:
  (3.1) **Truck Terminal**
  (3.2) **Waste Processing Station**
  (3.3) **Waste Transfer Station**
  (3.4) **Composting Facility**
(4) Asbestos products manufacturing legally **existing** on the date of passing of this By-law
(5) Cement manufacturing legally **existing** on the date of passing of this By-law
(6) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law
(7) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law
(8) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law
(9) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law
(10) Smelting or foundry operations legally **existing** on the date of passing of this By-law
(11) Solvent manufacturing legally **existing** on the date of passing of this By-law
(12) Tannery legally **existing** on the date of passing of this By-law
(13) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law
(14) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

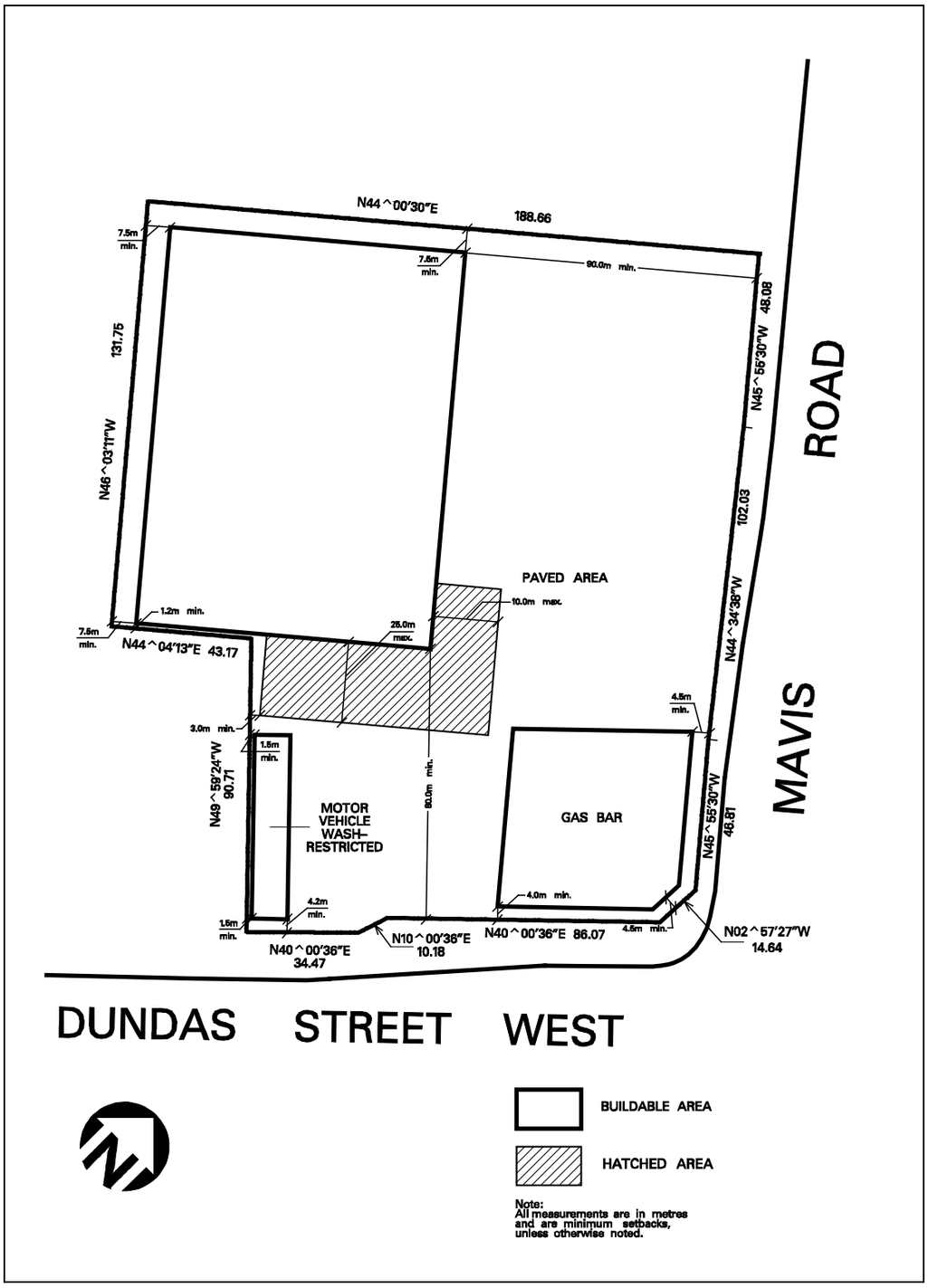
Uses Not Permitted

6.2.4.16.1A

(1) Asbestos Products Manufacturing
(2) Cement Manufacturing
(3) Gypsum or limestone processing and by-product manufacturing
(4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing
(5) Petroleum and coal refining and by-product manufacturing
(6) Phosphate or sulphur products and manufacturing
(7) Smelting or Foundry Operations
(8) Solvent Manufacturing
(9) Tannery
(10) Tar and Asphalt Manufacturing
(11) Motor Vehicle Wrecking Yard

Exception C3-16 continued on next page

6.2.4.16	Exception: C3-16	Map # 23	By-law: 0229-2018, 0208-2022
Exception C3-16 continued from previous page			
Regulations			
6.2.4.16.2	**Uses** contained in Clauses 6.2.4.16.1(1), 6.2.4.16.1(2) and 6.2.4.16.1(3) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.16.3	Maximum floor area of a **motor vehicle wash facility - restricted**		660 m^2
6.2.4.16.4	Maximum **gross floor area - non-residential** used for an upper level racking system		1 750 m^2
6.2.4.16.5	Maximum **height** of all materials stored and displayed in a **garden centre** or outdoor **garden centre** accessory to a **retail store**		3.2 m
6.2.4.16.6	Parking will not be required for the upper level racking system referenced in Sentence 6.2.4.16.4 of this Exception		
6.2.4.16.7	A **motor vehicle wash facility - restricted** shall also include a coin-operated motor vehicle wash facility - restricted		
6.2.4.16.8	Stairs may encroach outside the **buildable area** identified on Schedule C3-16 of this Exception, along the west boundary of the property line		
6.2.4.16.9	An outdoor **garden centre** shall only be permitted within the hatched area identified on Schedule C3-16 of this Exception		
6.2.4.16.10	All site development plans shall comply with Schedule C3-16 of this Exception		



Schedule C3-16
Map 23

6.2.4.17	Exception: C3-17	Map # 55	By-law:

In a C3-17 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.17.1
(1) **Garden Centre**
(2) **Uses** permitted within the E2 zone in Subsection 8.2.1 except:
(2.1) **Truck Terminal**
(2.2) **Waste Processing Station**
(2.3) **Waste Transfer Station**
(2.4) **Composting Facility**

Regulations

6.2.4.17.2	**Uses** contained in Sentence 6.2.4.17.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law	
6.2.4.17.3	Minimum setback from Argentia Road and Tenth Line West	6.0 m
6.2.4.17.4	Maximum setback of the **building** or **structure**, where the **main front entrance** of any **building** or **structure** faces Argentia Road or Tenth Line West	25.0 m
6.2.4.17.5	Notwithstanding Sentence 6.2.4.17.4 of this Exception, a maximum of one **building** or **structure** located south of Argentia Road and whose **main front entrance** faces Argentia Road may be set back beyond the maximum 25 m setback requirement	
6.2.4.17.6	Minimum setback from Winston Churchill Boulevard north of Argentia Road	13.7 m
6.2.4.17.7	Minimum setback from Winston Churchill Boulevard south of Argentia Road	7.5 m
6.2.4.17.8	Where a minimum setback is provided under Sentence 6.2.4.17.3 of this Exception, a **driveway**, **aisle** or other paved area shall not be permitted between the exterior wall of the **building** or **structure** and Argentia Road or Tenth Line West	
6.2.4.17.9	No loading or service facilities shall be located within any **yard** abutting Highway 401, Winston Churchill Boulevard or Argentia Road.	
6.2.4.17.10	Setback of any **building** or **structure** from a Provincial Highway right-of-way	13.7 m
6.2.4.17.11	Minimum setback of any **building** or **structure** from lands zoned PB1	20.5 m

6.2.4.18	Exception: C3-18	Map # 22	By-law:
In a C3-18 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.18.1	(1)	**Motor vehicle body repair facility** accessory to **motor vehicle sales, leasing and/or rental facility - restricted**	
Regulations			
6.2.4.18.2	Minimum required depth of a **landscaped buffer** adjacent to and along the easterly **lot line**		7.5 m
6.2.4.18.3	Minimum **rear yard**		10.5 m
6.2.4.18.4	An accessory **motor vehicle body repair facility use** shall be contained within an enclosed **building** or **structure** and shall not include the **outdoor storage** of parts or materials		

6.2.4.19	Exception: C3-19	Map # 25, 26, 27, 35E 35W, 46E	By-law:
In a C3-19 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.19.1	(1)	**Motor vehicle body repair facility** accessory to **motor vehicle sales, leasing and/or rental facility - restricted**	
Regulation			
6.2.4.19.2	An accessory **motor vehicle body repair facility use** shall be contained within an enclosed **building** or **structure** and shall not include the **outdoor storage** of parts or materials		

6.2.4.20	Exception: C3-20	Map # 16	By-law: 0199-2024
In a C3-20 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.4.20.1	Lands zoned C3-20 shall only be used for the following: (1) Motor Vehicle Repair Facility - Restricted		
Regulations			
6.2.4.20.2	The **lot line** abutting Dundas Street East shall be deemed to be the **front lot line**		
6.2.4.20.3	Minimum **front yard**		0.0 m
6.2.4.20.4	Minimum **exterior side yard**		0.0 m
6.2.4.20.5	Minimum **interior side yard**		7.5 m
6.2.4.20.6	Minimum **rear yard**		20.0 m
6.2.4.20.7	"Motor Vehicle Repair Facility - Restricted" shall only include the sale and installation of **motor vehicle** equipment, motor vehicle cleaning, waxing and rustproofing but shall not include a **motor vehicle wash facility - restricted**, time-pay motor vehicle wash facility, coin-operated motor vehicle wash facility, wand wash motor vehicle wash facility or other manually operated equipment or facility for the washing of **motor vehicles**		

6.2.4.21	Exception: C3-21	Map # 18	By-law: 0018-2015, 0217-2023
In a C3-21 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Use Not Permitted			
6.2.4.21.1	(1) **Motor Vehicle Sales, Leasing and/or Rental Facility - Restricted**		
Regulations			
6.2.4.21.2	Maximum number of **convenience restaurants**		2
6.2.4.21.3	The provisions contained in Subsection 2.1.29 of this By-law shall not apply		

6.2.4.22	Exception: C3-22	Map # 24	By-law:
In a C3-22 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.4.22.1	Lands zoned C3-22 shall only be used for the following: (1) **Funeral Establishment**		

6.2.4.23	Exception: C3-23	Map # 19	By-law:
In a C3-23 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.4.23.1	Lands zoned C3-23 shall only be used for the following: (1) Access to lands zoned RA2-18 and R4-51		

6.2.4.24	Exception: C3-24	Map # 21	By-law: 0111-2019/ LPAT Order 2021 March 09
In a C3-24 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Uses			
6.2.4.24.1	Lands zoned C3-24 shall only be used for the following: (1) **Retail Store** (2) **Veterinary Clinic** (3) **Animal Care Establishment** (4) **Service Establishment** (5) **Commercial School** (6) **Financial Institution** (7) **Repair Establishment** (8) **Office** (9) **Recreational Establishment** (10) **Private Club**		
Regulations			
6.2.4.24.2	Minimum **lot frontage**		40 m
6.2.4.24.3	Minimum depth of a **landscaped buffer** abutting a Residential Zone		3.0 m
6.2.4.24.4	Minimum depth of a **landscaped buffer** abutting a railway right-of-way, Employment or Commercial Zone		1.5 m
6.2.4.24.5	Maximum **height**		3 **storeys**
Holding Provision			
	Only the following **uses** shall be permitted prior to the removal of the holding symbol H: (1) retail sales and installation of pools, hot tubs and recreational home equipment including supplies and accessories (2) warehouse, **office** and **outdoor storage** and display accessory to the **uses** permitted in clause (1) "Recreational Home Equipment" means leisure equipment, fitness equipment, patio furniture, gazebos and accessories.		
	Maximum **gross floor area - non-residential**		1 053 m^2
	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential**		1.4

Exception C3-24 continued on next page

6.2.4.24	Exception: C3-24	Map # 21	By-law: 0111-2019/ LPAT Order 2021 March 09
Exception C3-24 continued from previous page			
Holding Provision (continued)	The holding symbol H is to removed from the whole or any part of the lands zoned H-C3-24 by further amendment to Map 21 of Schedule B contained in Part 13 of this By-law, as amended, upon satisfaction of the following requirements: (1) the owner shall have submitted a Noise and Vibration Report satisfactory to the Planning and Building Department and the Transportation and Works Department; (2) the owner shall have submitted a Phase I Environmental Site Assessment and any subsequent environmental report deemed necessary to the satisfaction of the Transportation and Works Department; (3) the owner shall pay a cash contribution toward the reconstruction of Hensall Circle in an amount satisfactory to the Transportation and Works Department; (4) the owner shall remove all of the parking from the municipal boulevard and pay an amount satisfactory to the Transportation and Works Department for the cost of the reinstatement of the municipal curb, boulevard, sidewalk and any required utility relocation; (5) the owner shall have executed and delivered the required Development Agreement and Warning Clause Agreement on terms satisfactory to the City and the Transportation and Works Department; (6) the owner shall make a payment for the cash-in-lieu of parkland for park or other public recreational purposes.		

6.2.4.25	Exception: C3-25	Map # 14	By-law:
In a C3-25 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Regulation			
6.2.4.25.1	Maximum **gross floor area - non-residential**		1 000 m^2

6.2.4.26	Exception: C3-26	Map #	By-law: *deleted by 0240-2022*

6.2.4.27	Exception: C3-27	Map # 39E	By-law:
In a C3-27 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.27.1	(1) **Motor Vehicle Repair Facility - Restricted**		

6.2.4.28	Exception: C3-28	Map # 37W, 44W	By-law: 0379-2009, 0212-2015, 0100-2024

In a C3-28 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.28.1
(1) **Garden Centre**
(2) *deleted*
(3) Motor Vehicle Retail Store
(4) Required parking for abutting lands zoned C3-51

Regulations

6.2.4.28.2	Minimum depth of a **landscaped buffer** abutting Ivandale Drive	7.0 m
6.2.4.28.3	Minimum setback from Mavis Road and Britannia Road West	7.5 m
6.2.4.28.4	Maximum **height** of all materials stored and displayed in a **garden centre**	3.1 m
6.2.4.28.5	Minimum **height** of fencing or screening surrounding an outdoor display and sales area to a **garden centre**	3.1 m
6.2.4.28.6	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.28.9 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.28.9 of this Exception	
6.2.4.28.7	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.28.10 and 6.2.4.28.11 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a motor vehicle retail store	
6.2.4.28.8	Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.28.10 and 6.2.4.28.11 of this Exception, and the following: The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.28.10 and 6.2.4.28.11 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.28.6 of this Exception	

Exception C3-28 continued on next page

6.2.4.28	Exception: C3-28	Map # 37W, 44W	By-law: 0379-2009, 0212-2015, 0100-2024

Exception C3-28 continued from previous page

Table 6.2.4.28.9

Column 1	**Column 2**
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Table 6.2.4.28.10

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.28.11

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.28.12 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.29	Exception: C3-29	Map # 37W, 44W	By-law: 0379-2009, 0212-2015, 0100-2024

In a C3-29 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.29.1
(1) **Garden Centre**
(2) *deleted*
(3) Motor Vehicle Retail Store
(4) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:
(4.1) **Truck Terminal**
(4.2) **Waste Processing Station**
(4.3) **Waste Transfer Station**
(4.4) **Composting Facility**

Regulations

6.2.4.29.2	**Uses** contained in Sentence 6.2.4.29.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law	
6.2.4.29.3	Minimum setback from Mavis Road and Britannia Road West	7.5 m
6.2.4.29.4	Maximum **height** of all materials stored and displayed in a **garden centre**	3.1 m
6.2.4.29.5	Minimum **height** of fencing or screening surrounding an outdoor display and sales area of a **garden centre**	3.1 m
6.2.4.29.6	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.29.9 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.29.9 of this Exception	
6.2.4.29.7	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.29.10 and 6.2.4.29.11 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a motor vehicle retail store	
6.2.4.29.8	Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.29.10 and 6.2.4.29.11 of this Exception, and the following: The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.29.10 and 6.2.4.29.11 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.29.6 of this Exception	

Table 6.2.4.29.9

Column 1	Column 2
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Exception C3-29 continued on next page

6.2.4.29	Exception: C3-29	Map # 37W, 44W	By-law: 0379-2009, 0212-2015, 0100-2024

Exception C3-29 continued from previous page

Table 6.2.4.29.10

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Industrial/**Office/ Medical Office**	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.29.11

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Industrial/**Office/ Medical Office**	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.29.12 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.30	Exception: C3-30	Map # 37W	By-law:
In a C3-30 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.30.1	(1) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (1.1) **Truck Terminal** (1.2) **Waste Processing Station** (1.3) **Waste Transfer Station** (1.4) **Composting Facility**		
Regulations			
6.2.4.30.2	**Uses** contained in Sentence 6.2.4.30.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.30.3	Minimum **height** of fencing or screening surrounding an outdoor display and sales area accessory to a **garden centre**		3.1 m
6.2.4.30.4	Minimum number of **parking spaces** for **restaurants**, **convenience restaurants** and **take-out restaurants** per 100 m^2 **GFA - non-residential**		5.4

6.2.4.31	Exception: C3-31	Map # 36W	By-law: 0379-2009
In a C3-31 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.31.1	(1) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (1.1) **Truck Terminal** (1.2) **Waste Processing Station** (1.3) **Waste Transfer Station** (1.4) **Composting Facility** (1.5) *deleted* (1.6) *deleted* (1.7) **Motor Vehicle Repair Facility - Restricted** (1.8) **Motor Vehicle Rental Facility** (1.9) *deleted* (1.10) **Motor Vehicle Wash Facility - Restricted** (1.11) **Gas Bar** (1.12) **Motor Vehicle Service Station** (1.13) **Adult Entertainment Establishment** (1.14) **Body Rub Establishment**		
Regulation			
6.2.4.31.2	**Uses** contained in Sentence 6.2.4.31.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.32	Exception: C3-32	Map # 37W, 48W	By-law:
In a C3-32 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.32.1	(1) C5 **uses** contained in Subsection 6.2.1 of this By-law		
Regulation			
6.2.4.32.2	**Uses** contained in Sentence 6.2.4.32.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.33	Exception: C3-33	Map # 35E	By-law: 0325-2008
In a C3-33 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.33.1	(1) Motor vehicle convenience centre, accessory to a **gas bar** (2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (2.1) **Truck Terminal** (2.2) **Waste Processing Station** (2.3) **Waste Transfer Station** (2.4) **Composting Facility**		
Regulations			
6.2.4.33.2	**Uses** contained in Sentence 6.2.4.33.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.33.3	Maximum number of **convenience restaurants**		1
6.2.4.33.4	Maximum **gross floor area - non-residential** used for a motor vehicle convenience centre		900 m^2
6.2.4.33.5	Maximum **gross floor area - non-residential** used for a **convenience restaurant** not located within a motor vehicle convenience centre		105 m^2
6.2.4.33.6	Maximum **gross floor area - non-residential** of all **buildings** and **structures**		1 210 m^2
6.2.4.33.7	The **lot line** abutting Dixie Road shall be deemed to be the **front lot line**		
6.2.4.33.8	Maximum **front yard**		18.0 m
6.2.4.33.9	Maximum **exterior side yard**		10.5 m
6.2.4.33.10	Maximum **interior side yard**		3.4 m
6.2.4.33.11	Maximum **rear yard**		10.5 m
6.2.4.33.12	Maximum **height**		7.7 m
6.2.4.33.13	Minimum number of **parking spaces** per 100 m^2 **gross floor area – non-residential** motor vehicle convenience centre		6.9 spaces
6.2.4.33.14	Where a **convenience restaurant** is attached to a **building** or **structure** used for a motor vehicle convenience centre, parking for the **convenience restaurant** may be provided in accordance with Sentence 6.2.4.33.13 of this Exception		
6.2.4.33.15	"Motor Vehicle Convenience Centre" means a **building** or **structure** used for a **retail store** and may include an accessory **restaurant**, **convenience restaurant** or **take-out restaurant** including an accessory outdoor patio		

6.2.4.34	Exception: C3-34	Map # 39W	By-law: 0325-2008
In a C3-34 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.34.1	(1) **Gas Bar** (2) **Motor Vehicle Wash Facility - Restricted**		
Uses Not Permitted			
6.2.4.34.2	(1) **Motor Vehicle Service Station** (2) **Motor Vehicle Repair Facility - Restricted**		
Regulations			
6.2.4.34.3	Maximum **gross floor area – non-residential** used for a **motor vehicle wash facility - restricted**		270 m^2
6.2.4.34.4	Maximum **gross floor area - non-residential** used for an accessory **convenience retail and service kiosk**		35 m^2
6.2.4.34.5	Minimum setback of all **buildings** and **structures** from the **lot line** abutting Eglinton Avenue West		11.0 m
6.2.4.34.6	Maximum setback of all **buildings** and **structures** from the **lot line** abutting Eglinton Avenue West		13.0 m
6.2.4.34.7	Minimum setback of all **buildings** and **structures** from the **lot line** abutting Glen Erin Drive		32.0 m
6.2.4.34.8	Maximum setback of all **buildings** and **structures** from the **lot line** abutting Glen Erin Drive		35.0 m
6.2.4.34.9	Minimum setback of all **buildings** and **structures** to any **sight triangle**		0.0 m
6.2.4.34.10	Minimum setback of a **gas bar** weather canopy from the **lot line** abutting Glen Erin Drive		40.0 m
6.2.4.34.11	Maximum setback of a **gas bar** weather canopy from the **lot line** abutting Glen Erin Drive		43.0 m
6.2.4.34.12	The provisions contained in Subsection 2.1.14 of this By-law shall not apply		

6.2.4.35	Exception: C3-35	Map # 13	By-law: 0325-2008, 0229-2018

In a C3-35 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.35.1

(1) The **existing adult video store** located in Unit 9, 1370 Dundas Street East

(2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:

(2.1) **Truck Terminal**

(2.2) **Waste Processing Station**

(2.3) **Waste Transfer Station**

(2.4) **Composting Facility**

(3) Asbestos products manufacturing legally **existing** on the date of passing of this By-law

(4) Cement manufacturing legally **existing** on the date of passing of this By-law

(5) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law

(6) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law

(7) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law

(8) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law

(9) Smelting or foundry operations legally **existing** on the date of passing of this By-law

(10) Solvent manufacturing legally **existing** on the date of passing of this By-law

(11) Tannery legally **existing** on the date of passing of this By-law

(12) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law

(13) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

Uses Not Permitted

6.2.4.35.1A

(1) Asbestos Products Manufacturing

(2) Cement Manufacturing

(3) Gypsum or limestone processing and by-product manufacturing

(4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing

(5) Petroleum and coal refining and by-product manufacturing

(6) Phosphate or sulphur products and manufacturing

(7) Smelting or Foundry Operations

(8) Solvent Manufacturing

(9) Tannery

(10) Tar and Asphalt Manufacturing

(11) Motor Vehicle Wrecking Yard

Regulation

6.2.4.35.2 **Uses** contained in Clauses 6.2.4.35.1(1) and 6.2.4.35.1(2) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law

6.2.4.36	Exception: C3-36	Map # 49E	By-law:
In a C3-36 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Use Not Permitted			
6.2.4.36.1 (1) **Convenience Restaurant**			

6.2.4.37	Exception: C3-37	Map # 12	By-law: 0229-2018
In a C3-37 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.37.1 (1) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (1.1) **Truck Terminal** (1.2) **Waste Processing Station** (1.3) **Waste Transfer Station** (1.4) **Composting Facility** (2) Asbestos products manufacturing legally **existing** on the date of passing of this By-law (3) Cement manufacturing legally **existing** on the date of passing of this By-law (4) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law (5) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law (6) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law (7) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law (8) Smelting or foundry operations legally **existing** on the date of passing of this By-law (9) Solvent manufacturing legally **existing** on the date of passing of this By-law (10) Tannery legally **existing** on the date of passing of this By-law (11) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law (12) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law			
Uses Not Permitted			
6.2.4.37.1A (1) Asbestos Products Manufacturing (2) Cement Manufacturing (3) Gypsum or limestone processing and by-product manufacturing (4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing (5) Petroleum and coal refining and by-product manufacturing (6) Phosphate or sulphur products and manufacturing (7) Smelting or Foundry Operations (8) Solvent Manufacturing (9) Tannery (10) Tar and Asphalt Manufacturing (11) Motor Vehicle Wrecking Yard			

Exception C3-37 continued on next page

6.2.4.37	Exception: C3-37	Map # 12	By-law: 0229-2018
Exception C3-37 continued from previous page			
Regulations			
6.2.4.37.2	**Uses** contained in Clause 6.2.4.37.1(1) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.37.3	Minimum depth of **landscaped buffer** measured from a **lot line** that is a **street line**		3.0 m
6.2.4.37.4	Minimum depth of **landscaped buffer** measured from an adjacent **lot line** other than a **lot line** abutting a G1 zone		1.5 m

6.2.4.38	Exception: C3-38	Map # 36W	By-law: 0111-2019/ LPAT Order 2021 March 09, 0121-2020/LPAT Order 2021 March 11
In an C3-38 zone the permitted **uses** and applicable regulations shall be as specified for an C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.38.1	(1) C5 **uses** contained in Subsection 6.2.1 of this By-law, except: (1.1) **Motor Vehicle Repair Facility - Restricted**		
Uses Not Permitted			
6.2.4.38.2	(1) *deleted* (2) **Funeral Establishment** (3) **Place of Religious Assembly** (4) **Private Club**		
Regulations			
6.2.4.38.3	The provisions contained in Table 2.1.2.1.1 of this By-law shall not apply		
6.2.4.38.4	Maximum **gross floor area - non-residential** of all **buildings** and **structures**		3 950 m^2
6.2.4.38.5	Maximum **gross floor area - non-residential** used for a food store		745 m^2
6.2.4.38.6	Maximum **gross floor area - non-residential** used for a pharmacy		605 m^2
6.2.4.38.7	Minimum **front yard**		12.0 m

6.2.4.39	Exception: C3-39	Map # 26	By-law: 0100-2024
In a C3-39 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.39.1	(1) *deleted* (2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (2.1) Motel (2.2) **Truck Terminal** (2.3) **Waste Processing Station** (2.4) **Waste Transfer Station** (2.5) **Composting Facility**		
Regulation			
6.2.4.39.2	**Uses** contained in Sentence 6.2.4.39.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.40	Exception: C3-40	Map # 55	By-law: 0111-2019/ LPAT Order 2021 March 09, 0217-2023
In an C3-40 zone the permitted **uses** and applicable regulations shall be as specified for an C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.40.1	(1) **Uses** permitted within the E2 zone in Subsection 8.2.1 except: (1.1) **Truck Terminal** (1.2) **Waste Processing Station** (1.3) **Waste Transfer Station** (1.4) **Composting Facility** (2) **Garden Centre** (3) *deleted*		
Uses Not Permitted			
6.2.4.40.2	(1) **Funeral Establishment** (2) Commercial Garage (3) Cold Storage		
Regulations			
6.2.4.40.3	**Uses** contained in Sentence 6.2.4.40.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.40.4	*deleted*		
6.2.4.40.5	Maximum **gross floor area - non-residential**		13 355 m^2
6.2.4.40.6	Minimum setback to Argentia Road and Tenth Line West		6.0 m
6.2.4.40.7	Loading and service facilities shall not be permitted in any **yard** abutting Argentia Road		
6.2.4.40.8	Minimum number of **loading spaces** for a **building** with a total **gross floor area - non-residential** less than or equal to 2 350 m^2		1.0
6.2.4.40.9	Minimum number of **loading spaces** for a **building** with a total **gross floor area - non-residential** greater than 2 351 m^2 but less than or equal to 13 355 m^2 **gross floor area - non-residential**		2.0

6.2.4.41	Exception: C3-41	Map # 23	By-law: 0325-2008, 0174-2015, 0229-2018

In a C3-41 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.41.1

(1) Flea Market
(2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:
  (2.1) **Truck Terminal**
  (2.2) **Waste Processing Station**
  (2.3) **Waste Transfer Station**
  (2.4) **Composting Facility**
(3) Asbestos products manufacturing legally **existing** on the date of passing of this By-law
(4) Cement manufacturing legally **existing** on the date of passing of this By-law
(5) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law
(6) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law
(7) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law
(8) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law
(9) Smelting or foundry operations legally **existing** on the date of passing of this By-law
(10) Solvent manufacturing legally **existing** on the date of passing of this By-law
(11) Tannery legally **existing** on the date of passing of this By-law
(12) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law
(13) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

Uses Not Permitted

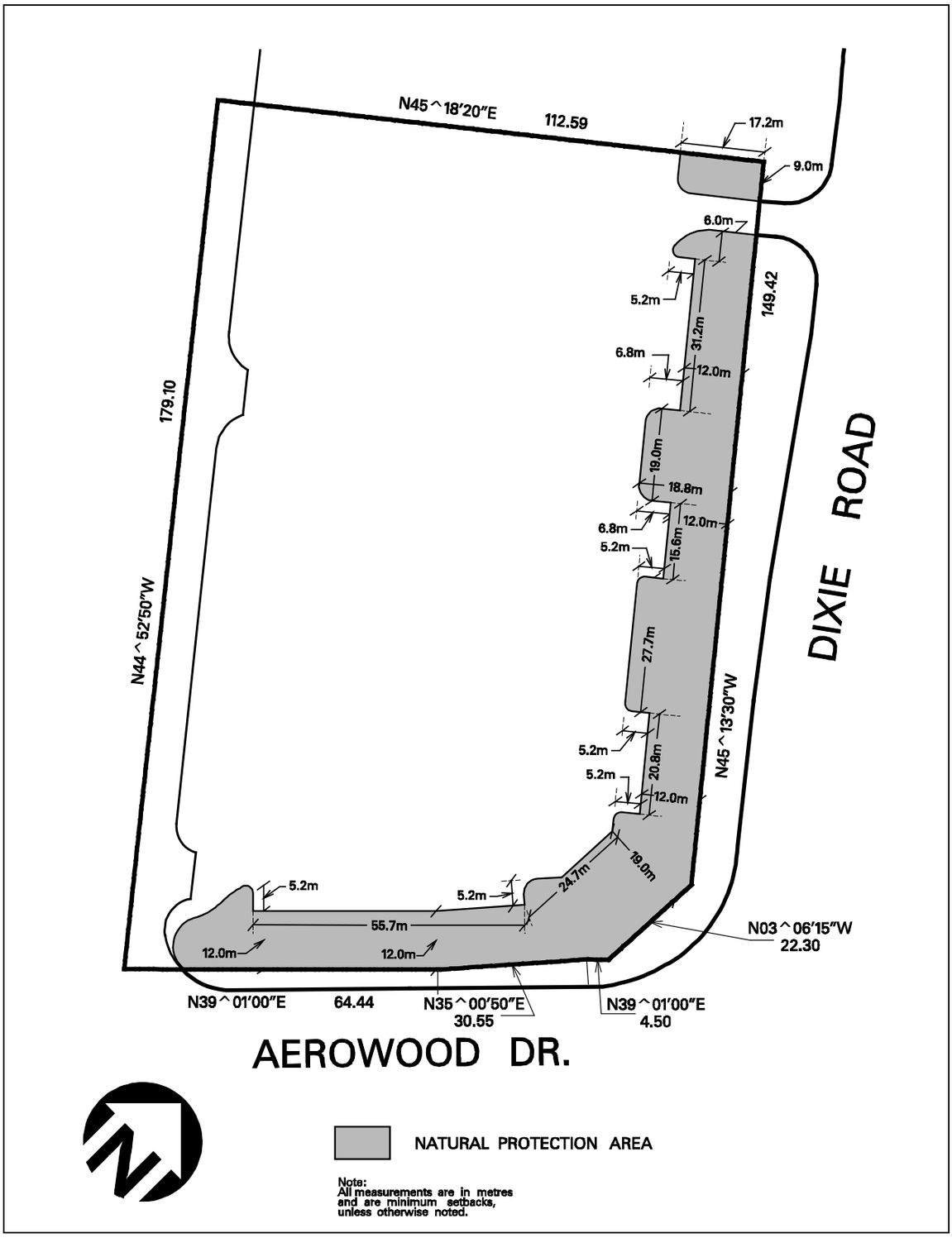
6.2.4.41.2

(1) **Place of Religious Assembly**
(2) Drug Store
(3) Pharmacy
(4) Retail sale of automotive parts and accessories
(5) Department Store
(6) Food Supermarket
(7) Asbestos Products Manufacturing
(8) Cement Manufacturing
(9) Gypsum or limestone processing and by-product manufacturing
(10) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing
(11) Petroleum and coal refining and by-product manufacturing
(12) Phosphate or sulphur products and manufacturing
(13) Smelting or Foundry Operations
(14) Solvent Manufacturing
(15) Tannery
(16) Tar and Asphalt Manufacturing
(17) Motor Vehicle Wrecking Yard

Exception C3-41 continued on next page

6.2.4.41	Exception: C3-41	Map # 23	By-law: 0325-2008, 0174-2015, 0229-2018
Exception C3-41 continued from previous page			
Regulations			
6.2.4.41.3	**Uses** contained in Clauses 6.2.4.41.1(1) and 6.2.4.41.1(2) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.41.4	Maximum number of flea markets		1
6.2.4.41.5	Maximum **gross floor area - non-residential** used for a food store		600 m^2
6.2.4.41.6	Maximum **gross floor area - non-residential** used for a flea market		4 700 m^2
6.2.4.41.7	Maximum **gross floor area - non-residential** used for retail sales		9 300 m^2
6.2.4.41.8	"Flea Market" means a **building**, **structure** or part thereof, where new or used goods or second-hand personal property is offered for sale to the general public by a number of individual vendors in compartmentalized spaces		

6.2.4.42	Exception: C3-42	Map # 35W	By-law:
In a C3-42 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.42.1	(1) **Motor vehicle body repair facility** accessory to **motor vehicle sales**, **leasing and/or rental facility - restricted**		
Regulations			
6.2.4.42.2	Minimum **landscaped area** abutting Dixie Road and Highway 401 off-ramp		9.0 m
6.2.4.42.3	An accessory **motor vehicle body repair facility use** shall be contained within an enclosed **building** or **structure** and shall not include the **outdoor storage** of parts or materials		
6.2.4.42.4	All site development plans shall comply with Schedule C3-42 of this Exception		



Schedule C3-42
Map 35W

6.2.4.43	Exception: C3-43	Map # 21	By-law: 0100-2024
In a C3-43 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.43.1	(1) **Garden Centre** (2) *deleted*		
Regulations			
6.2.4.43.2	No **restaurant** or **take-out restaurant** shall be located closer than 42.0 m to a Residential Zone		
6.2.4.43.3	An outdoor patio accessory to a **restaurant** or **take-out restaurant** shall only be located between the **building** and the front property line		

6.2.4.44	Exception: C3-44	Map # 25, 46E	By-law: 0212-2015, 0144-2016, 0100-2024
In a C3-44 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.44.1	(1) *deleted* (2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (2.1) **Truck Terminal** (2.2) **Waste Processing Station** (2.3) **Waste Transfer Station** (2.4) **Composting Facility**		
Regulations			
6.2.4.44.2	**Uses** contained in Sentence 6.2.4.44.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.44.3	Maximum area used for an outdoor patio accessory to a **restaurant** or **convenience restaurant** or **take-out restaurant**, shall not exceed 20% of the **gross floor area** of the **restaurant**, **convenience restaurant** or **take-out restaurant**		

6.2.4.45	Exception: C3-45	Map # 52E	By-law: OMB Order 2008 January 30, 0083-2008, 0111-2019/LPAT Order 2021 March 09, 0100-2024
In a C3-45 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.45.1	(1) *deleted* (2) **Garden Centre** (3) *deleted*		
Regulations			
6.2.4.45.2	Minimum depth of a **landscaped buffer** adjacent a Residential Zone		9.0 m
6.2.4.45.3	Minimum depth of a **landscaped buffer** adjacent a Residential Zone within 40.0 m of McLaughlin Road		0.0 m
6.2.4.45.4	The **lot line** abutting Derry Road West shall be deemed to be the **front lot line**		
6.2.4.45.5	Minimum **rear yard**		9.0 m
6.2.4.45.6	Minimum setback to a G1 zone		4.5 m
6.2.4.45.7	Maximum setback to Derry Road West of all **buildings** and **structures** in excess of 13 000 m^2		25.0 m

6.2.4.46	Exception: C3-46	Map # 23, 46E, 59	By-law: 0325-2008, 0229-2018
In a C3-46 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.46.1	(1) **Garden Centre** (2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (2.1) **Truck Terminal** (2.2) **Waste Processing Station** (2.3) **Waste Transfer Station** (2.4) **Composting Facility**		
Regulation			
6.2.4.46.2	**Uses** contained in Sentence 6.2.4.46.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.47	Exception: C3-47	Map # 23	By-law: 0325-2008
In a C3-47 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.47.1	(1) **Garden Centre** (2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (2.1) **Truck Terminal** (2.2) **Waste Processing Station** (2.3) **Waste Transfer Station** (2.4) **Composting Facility**		
Regulations			
6.2.4.47.2	**Uses** contained in Sentence 6.2.4.47.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		
6.2.4.47.3	Maximum **gross floor area - non-residential** used for a **garden centre**		165 m^2

6.2.4.48	Exception: C3-48	Map # 22, 28, 39W	By-law:
In a C3-48 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.48.1	(1) **Garden Centre** (2) Outdoor **garden centre** accessory to a **retail store**		

6.2.4.49	Exception: C3-49	Map # 45W	By-law:
In a C3-49 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.4.49.1	Lands zoned C3-49 shall only be used for the following: (1) **Day Care**		

6.2.4.50	Exception: C3-50	Map # 46E	By-law:
In a C3-50 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.50.1	(1) C5 **uses** contained in Subsection 6.2.1 of this By-law		
Regulation			
6.2.4.50.2	**Uses** contained in Sentence 6.2.4.50.1 of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law		

6.2.4.51	Exception: C3-51	Map # 37W	By-law: 0379-2009, 0212-2015, 0100-2024

In a C3-51 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.51.1
(1) **Garden Centre**
(2) *deleted*
(3) Motor Vehicle Retail Store
(4) **Motor vehicle repair facility - restricted** accessory to a **retail store** or a motor vehicle retail store

Regulations

6.2.4.51.2	Minimum depth of a **landscaped buffer** abutting Matheson Boulevard West	8.2 m
6.2.4.51.3	Minimum depth of a **landscaped buffer** abutting Matheson Boulevard within 54.2 m of the westerly **lot line**	15.0 m
6.2.4.51.4	Minimum depth of a **landscaped buffer** abutting Plymouth Drive	2.8 m
6.2.4.51.5	Minimum depth of a **landscaped buffer** abutting lands zoned E2-56	2.84 m
6.2.4.51.6	Minimum depth of a **landscaped buffer** abutting lands zoned C3-28	0.0 m
6.2.4.51.7	Minimum setback from Matheson Boulevard West	45.0 m
6.2.4.51.8	Minimum setback from Plymouth Drive	15.0 m
6.2.4.51.9	Maximum area used for outdoor display and sales area accessory to a **garden centre**	720.0 m^2
6.2.4.51.10	Maximum **height** of all materials stored and displayed in a **garden centre**	3.1 m
6.2.4.51.11	Minimum **height** of fencing or screening surrounding an outdoor display and sales area accessory to a **garden centre**	3.1 m
6.2.4.51.12	Required parking may be provided on abutting lands zoned C3-28	
6.2.4.51.13	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.51.16 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.51.16 of this Exception	
6.2.4.51.14	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.51.17 and 6.2.4.51.18 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a **retail store** or motor vehicle retail store	
6.2.4.51.15	Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.51.17 and 6.2.4.51.18 of this Exception, and the following: The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.51.17 and 6.2.4.51.18 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.51.13 of this Exception	

Exception C3-51 continued on next page

6.2.4.51	Exception: C3-51	Map # 37W	By-law: 0379-2009, 0212-2015, 0100-2024

Exception C3-51 continued from previous page

Table 6.2.4.51.16

Column 1	**Column 2**
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a **retail store** or motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Table 6.2.4.51.17

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a **retail store** or motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.51.18

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a **retail store** or motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.51.19 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.52	Exception: C3-52	Map # 21	By-law: 0111-2019/ LPAT Order 2021 March 09

In a C3-52 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Permitted Uses

6.2.4.52.1 Lands zoned C3-52 shall only be used for the following:

(1) **Retail Store**
(2) **Service Establishment**
(3) **Commercial School**
(4) **Financial Institution**
(5) **Repair Service**
(6) **Office**
(7) **Medical Office**
(8) Recreational Establishment
(9) **Outdoor storage** accessory to a **retail store**

Regulations

6.2.4.52.2	Maximum **gross floor area - non-residential** used for the preparation and sale of food accessory to a **retail store**	140 m^2
6.2.4.52.3	Maximum **gross floor area - non-residential** used for a **medical office**	210 m^2
6.2.4.52.4	Maximum size of area used for **outdoor storage** accessory to a retail store	40 m^2
6.2.4.52.5	**Gross floor area - non-residential** shall not include the area of the **building** or **structure** used for a freezer no greater than 97 m^2	
6.2.4.52.6	The area used for **outdoor storage** accessory to a **retail store** shall only be located in a **rear yard**	
6.2.4.52.7	The **lot line** abutting Dundas Street East shall be deemed to be the **front lot line**	
6.2.4.52.8	Minimum **front yard**	19.0 m
6.2.4.52.9	Minimum **exterior side yard**	30.0 m
6.2.4.52.10	Minimum **interior side yard**	3.0 m
6.2.4.52.11	Minimum **rear yard**	5.7 m
6.2.4.52.12	Maximum **height** of a fence surrounding the area used for **outdoor storage**	1.8 m
6.2.4.52.13	Maximum **height** of materials stored outside	1.5 m
6.2.4.52.14	Maximum encroachment of mechanical equipment into an **interior side yard**	2.0 m
6.2.4.52.15	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** used for a **commercial school**, **service establishment** or **retail store**	4.3
6.2.4.52.16	Minimum setback of a garbage enclosure to the rear property line	0.0 m
6.2.4.52.17	For the purpose of this Exception, a **commercial school** shall include a music school, a dance school, a martial arts school and tutoring	
6.2.4.52.18	"Recreational Establishment" means a **building**, **structure** or part thereof, designed and equipped to be used for athletic and leisure activities and may include such facilities as a fitness centre, racquet club and indoor playground	

6.2.4.53	Exception: C3-53	Map # 37W	By-law: 0325-2008, 0379-2009, 0212-2015, 0100-2024

In a C3-53 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.53.1
(1) **Garden Centre**
(2) *deleted*
(3) Motor Vehicle Retail Store
(4) **Motor vehicle repair facility - restricted** accessory to a motor vehicle retail store

Regulations

6.2.4.53.2	Minimum depth of a **landscaped buffer** abutting Matheson Boulevard West	7.5 m
6.2.4.53.3	Maximum **height** of all materials stored and displayed in a **garden centre**	3.1 m
6.2.4.53.4	Minimum **height** of fencing or screening surrounding an outdoor display and sales area accessory to a **garden centre**	3.1 m
6.2.4.53.5	Maximum number of required **parking spaces** permitted on abutting lands to the west that are zoned C3-29	25
6.2.4.53.6	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.53.9 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.53.9 of this Exception	
6.2.4.53.7	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.53.10 and 6.2.4.53.11 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a motor vehicle retail store	
6.2.4.53.8	Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.53.10 and 6.2.4.53.11 of this Exception, and the following: The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.53.10 and 6.2.4.53.11 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.53.6 of this Exception	

Exception C3-53 continued on next page

6.2.4.53	Exception: C3-53	Map # 37W	By-law: 0325-2008 0379-2009, 0212-2015, 0100-2024

Exception C3-53 continued from previous page

Table 6.2.4.53.9

Column 1	**Column 2**
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Table 6.2.4.53.10

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.53.11

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.53.12 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.54	Exception: C3-54	Map # 22	By-law:
In a C3-54 zone the applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Permitted Use			
6.2.4.54.1	Lands zoned C3-54 shall only be used for the following: (1) **Buildings** and **structures** legally **existing** on the date of passing of this By-law		
Regulations			
6.2.4.54.2	Minor alterations and additions to the **existing buildings** and **structures** shall be permitted in compliance with the following: (1) all additions shall comply with the E2 zone regulations contained in Subsection 8.2.1 of this By-law (2) the total **gross floor area - non-residential** of all additions shall not exceed 5% of the **gross floor area - non-residential existing** on the date of passing of this By-law		

6.2.4.55	Exception: C3-55	Map # 46W	By-law:
In a C3-55 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.55.1	(1) Outdoor **Garden Centre**		
Regulations			
6.2.4.55.2	The provisions contained in Subsection 1.1.4 of this By-law shall not apply		
6.2.4.55.3	Required parking shall also be permitted on adjacent lands zoned C3		

6.2.4.56	Exception: C3-56	Map # 26	By-law:
In a C3-56 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Regulation			
6.2.4.56.1	An **aisle** and 50 required **parking spaces** shall be permitted to be located off-site within the Burnhamthorpe Road East right-of-way		

6.2.4.57	Exception: C3-57	Map # 37W	By-law: 0370-2007, 0167-2009, 0379-2009, 0212-2015, 0100-2024

In a C3-57 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.57.1

(1) **Garden Centre**
(2) *deleted*
(3) Motor Vehicle Retail Store
(4) **Motor vehicle wash facility - restricted** which shall also include a partially enclosed coin-operated motor vehicle wash facility - restricted
(5) **Motor vehicle repair facility - restricted** accessory to a motor vehicle retail store

Regulations

6.2.4.57.2	Minimum setback to Plymouth Drive	18.5 m
6.2.4.57.3	Minimum setback to Latimer Drive	9.0 m
6.2.4.57.4	Minimum depth of a **landscaped buffer** abutting lands zoned C3-8	3.0 m
6.2.4.57.5	Maximum **gross floor area - non-residential**	5 300 m^2
6.2.4.57.6	Maximum area used for outdoor display and sales area accessory to a **garden centre**	720 m^2
6.2.4.57.7	Maximum **height** of all materials stored and displayed in a **garden centre**	3.1 m
6.2.4.57.8	Minimum **height** of fencing or screening surrounding an outdoor display and sales area accessory to a **garden centre**	3.1 m

6.2.4.57.9 **Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.57.12 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.57.12 of this Exception

6.2.4.57.10 Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.57.13 and 6.2.4.57.14 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a motor vehicle retail store

6.2.4.57.11 Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.57.13 and 6.2.4.57.14 of this Exception, and the following:

The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.57.13 and 6.2.4.57.14 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.57.9 of this Exception

Exception C3-57 continued on next page

6.2.4.57	Exception: C3-57	Map # 37W	By-law: 0370-2007, 0167-2009, 0379-2009, 0212-2015, 0100-2024

Exception C3-57 continued from previous page

Table 6.2.4.57.12

Column 1	**Column 2**
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Table 6.2.4.57.13

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/ conference centre/ convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.57.14

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/ conference centre/ convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.57.15 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.58	Exception: C3-58	Map # 37W	By-law: 0370-2007, 0379-2009, 0212-2015, 0100-2024

In a C3-58 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.58.1
(1) **Garden Centre**
(2) *deleted*
(3) Motor Vehicle Retail Store
(4) **Motor vehicle repair facility - restricted** accessory to a motor vehicle retail store
(5) **Motor Vehicle Body Repair Facility**
(6) **Motor Vehicle Rental Facility**

Regulations

6.2.4.58.2	Minimum setback to Plymouth Drive	18.5 m
6.2.4.58.3	Minimum depth of a **landscaped buffer** abutting lands zoned C3-8 and C3-11	3.0 m
6.2.4.58.4	Maximum **gross floor area - non-residential**	1 398 m^2
6.2.4.58.5	Maximum area used for outdoor display and sales area accessory to a **garden centre**	720 m^2
6.2.4.58.6	Maximum **height** of all materials stored and displayed in a **garden centre**	3.1 m
6.2.4.58.7	Minimum **height** of fencing or screening surrounding an outdoor display and sales area accessory to a **garden centre**	3.1 m
6.2.4.58.8	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.58.11 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.58.11 of this Exception	
6.2.4.58.9	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.58.12 and 6.2.4.58.13 of this Exception, of which retail **uses** include: **retail stores**, **financial institutions**, motor vehicle retail stores and **motor vehicle repair facilities - restricted** accessory to a motor vehicle retail store	
6.2.4.58.10	Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.58.12 and 6.2.4.58.13 of this Exception, and the following: The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.58.12 and 6.2.4.58.13 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.58.8 of this Exception	

Table 6.2.4.58.11

Column 1	Column 2
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Motor vehicle repair facility - restricted accessory to a motor vehicle retail store	5.5 spaces per 100 m^2 **GFA - non-residential** of which 50% may be **tandem parking spaces**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Exception C3-58 continued on next page

6.2.4.58	Exception: C3-58	Map # 37W	By-law: 0370-2007, 0379-2009, 0212-2015, 0100-2024

Exception C3-58 continued from previous page

Table 6.2.4.58.12

Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	100	90	95	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/ conference centre/ convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.58.13

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	10	10	10	10
Retail (includes retail-warehouse, **garden centre**, equipment rental, **financial institution**, motor vehicle retail store and **motor vehicle repair facility - restricted** accessory to a motor vehicle retail store)	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/ conference centre/ convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.58.14 "Retail-Warehouse" means a **building** or **structure**, or part thereof where goods are stored and offered for sale and shall include only the following: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.59	Exception: C3-59	Map # 58	By-law: 0109-2008
In a C3-59 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Regulation			
6.2.4.59.1	The provisions contained in Subsection 1.1.4 of this By-law shall not apply to a **public school**		

6.2.4.60	Exception: C3-60	Map #	By-law: 0109-2009, 0213-2009, *deleted by 0217-2023*

6.2.4.61	Exception: C3-61	Map # 37W	By-law: 0167-2009, 0212-2015, 0100-2024
In a C3-61 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Use			
6.2.4.61.1	(1) *deleted* (2) Retail-Warehouse		
Regulations			
6.2.4.61.2	**Motor vehicle** parking and loading shall be provided in accordance with Table 6.2.4.61.5 of this Exception or Part 3 of this By-law for **uses** not contained in Table 6.2.4.61.5 of this Exception		
6.2.4.61.3	Mixed **use** development means a combination of any two or more **uses** contained in Tables 6.2.4.61.6 and 6.2.4.61.7 of this Exception		
6.2.4.61.4	Where the **use** is a mixed **use** development, **motor vehicle** parking may be calculated in accordance with Tables 6.2.4.61.6 and 6.2.4.61.7 of this Exception, and the following: The initial step in determining required parking for a mixed **use** development is to calculate the parking requirement for each **use** in the development as if these **uses** were free-standing **buildings**. The required parking for each **use** is then multiplied by the percent of the peak period for each time period contained in Tables 6.2.4.61.6 and 6.2.4.61.7 of this Exception. Each column is totalled for weekday and weekend. The highest figure obtained from all time periods shall become the required parking for the mixed **use** development, and shall be applied to reduce the requirements specified under Sentence 6.2.4.61.2 of this Exception		

Exception C3-61 continued on next page

6.2.4.61	Exception: C3-61	Map # 37W	By-law: 0167-2009, 0212-2015, 0100-2024

Exception C3-61 continued from previous page

Table 6.2.4.61.5

Column 1	**Column 2**
Land Use	**Minimum Required Parking Standard**
Retail-Warehouse	1.6 spaces per 100 m^2 **GFA - non-residential**
Restaurant, **Convenience Restaurant**, **Take-out Restaurant**	5.4 spaces per 100 m^2 **GFA - non-residential**

Table 6.2.4.61.6

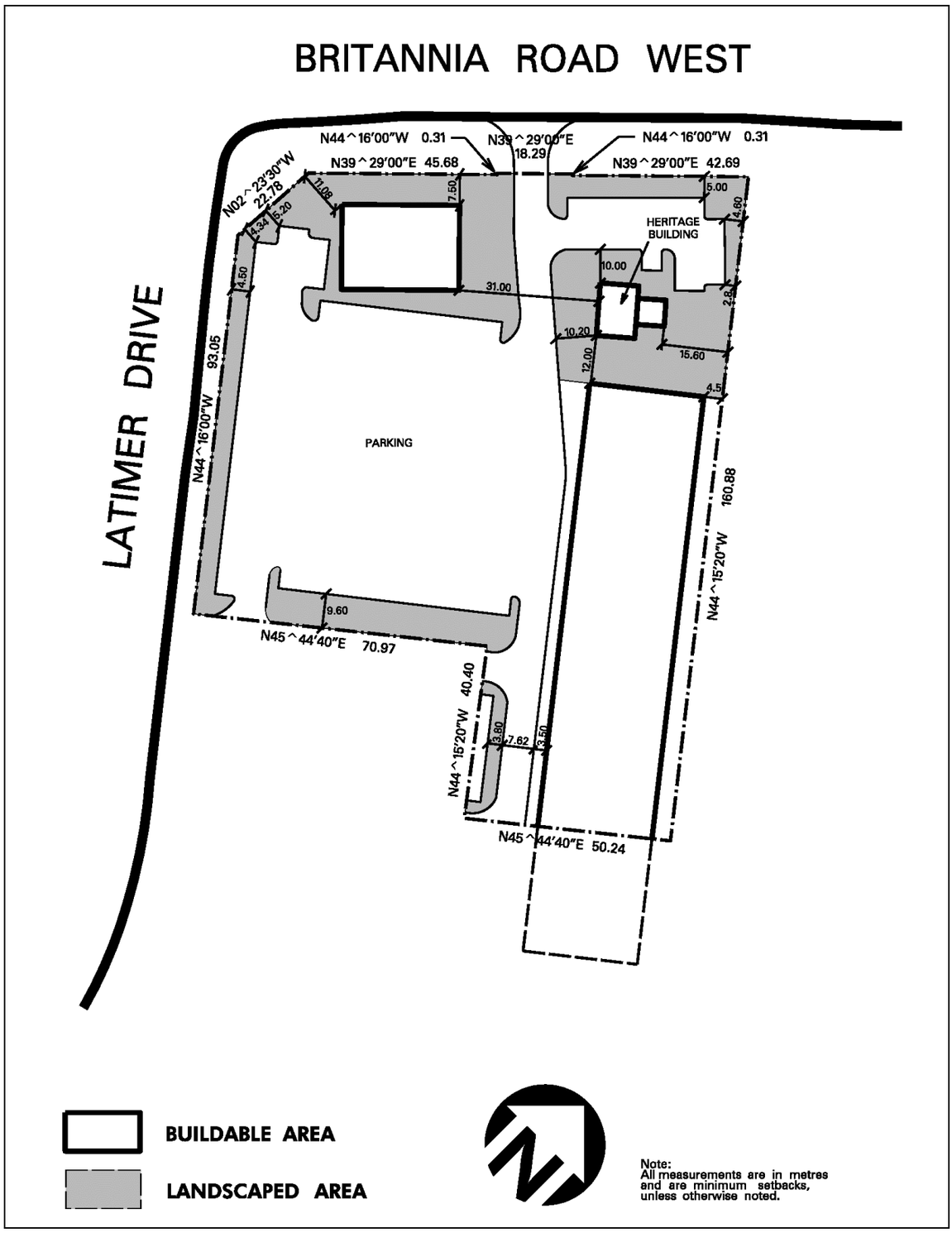
Percentage of Peak Period (Weekday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	100	90	95	10
Retail (includes retail-warehouse, equipment rental and **financial institution**	80	65	100	100
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/ convention centre**)	20	100	30	100
Entertainment Establishment	0	100	100	100
TOTAL				

Table 6.2.4.61.7

Percentage of Peak Period (Saturday)				
Land Use	**Morning**	**Noon**	**Afternoon**	**Evening**
Office/Medical Office	10	10	10	10
Retail (includes retail-warehouse, equipment rental and **financial institution**	80	100	100	30
Restaurant (includes **restaurant**, **convenience restaurant**, **take-out restaurant** and **banquet hall/conference centre/ convention centre**)	20	100	50	100
Entertainment Establishment	0	100	100	100
TOTAL				

6.2.4.61.8 "Retail-Warehouse" means a **building** or **structure**, or part thereof where only the following items are offered for sale, lease and/or rental to the consumer: home furnishings and home improvements products, furniture, appliances, electrical fixtures, carpets and floor coverings, building supplies, plumbing supplies, draperies and decorating supplies such as paint and wallpaper.

6.2.4.61.9 All site development plans shall comply with Schedule C3-61 of this Exception

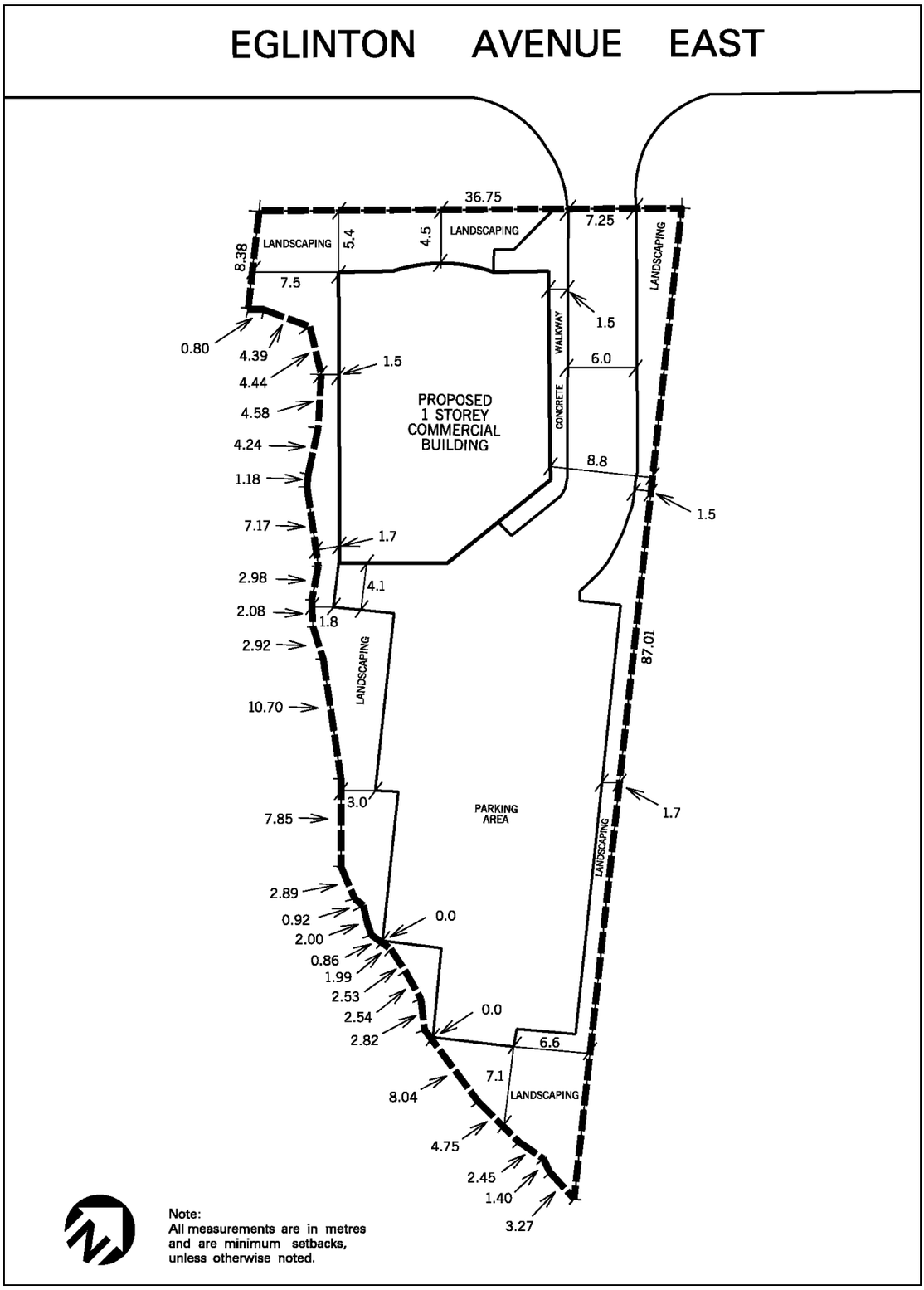


Schedule C3-61
Map 37W

6.2.4.62	Exception: C3-62	Map # 35W	By-law: 0043-2011
In a C3-62 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Additional Permitted Uses			
6.2.4.62.1	(1) **Garden Centre** (2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except: (2.1) **Truck Terminal** (2.2) **Waste Processing Station** (2.3) **Waste Transfer Station** (2.4) **Composting Facility**		
Regulations			
6.2.4.62.2	Maximum **gross floor area - non-residential** used for a **banquet hall/conference centre/convention centre**		1 200 m^2
6.2.4.62.3	Maximum total **gross floor area - non-residential** used for all **restaurant**, **convenience restaurant**, or **take-out restaurant uses**		3 540 m^2
6.2.4.62.4	Maximum **gross floor area - non-residential** used for a **night club**		1 840 m^2
6.2.4.62.5	Minimum number of **parking spaces** per 100 m^2 **gross floor area - non-residential** of all **uses** permitted on the lands		5.4
6.2.4.62.6	Minimum **aisle** width		6.0
6.2.4.62.7	For the purposes of this By-law, all lands zoned C3-62 shall be considered one **lot**		

6.2.4.63	Exception: C3-63	Map # 44W	By-law: 0225-2014, 0212-2015, 0111-2019/ LPAT Order 2021 March 09, 0217-2023
In a C3-63 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Uses Not Permitted			
6.2.4.63.1	(1) *deleted* (2) **Convenience Restaurant** (3) **Funeral Establishment** (4) **Commercial School** (5) **Overnight Accommodation** (6) **Banquet Hall/Conference Centre/Convention Centre** (7) **Recreational Establishment** (8) *deleted* (9) **Entertainment Establishment** (10) University/College		
Regulations			
6.2.4.63.2	*deleted*		
6.2.4.63.3	The **lot line** abutting Bancroft Drive shall be deemed to be the **front lot line**		
6.2.4.63.4	Minimum **front yard**		20.0 m
6.2.4.63.5	Minimum **exterior side yard**		20.0 m
6.2.4.63.6	Minimum depth of a **landscaped buffer** measured from a **lot line** abutting Ivandale Drive		7.0 m
6.2.4.63.7	Minimum depth of a **landscaped buffer** measured from a **lot line** abutting lands zoned E2-55		0.0 m
6.2.4.63.8	The **main front entrance** shall face Ivandale Drive or Bancroft Drive		

6.2.4.64	Exception: C3-64	Map # 27	By-law: 0054-2016
In a C3-64 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:			
Use Not Permitted			
6.2.4.64.1	(1) **Day Care**		
Regulation			
6.2.4.64.2	All site development plans shall comply with Schedule C3-64 of this Exception		



Schedule C3-64
Map 27

6.2.4.65	Exception: C3-65	Map # 12, 13, 14, 19	By-law: 0229-2018

In a C3-65 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.65.1

(1) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:
- (1.1) **Truck Terminal**
- (1.2) **Waste Processing Station**
- (1.3) **Waste Transfer Station**
- (1.4) **Composting Facility**

(2) Asbestos products manufacturing legally **existing** on the date of passing of this By-law

(3) Cement manufacturing legally **existing** on the date of passing of this By-law

(4) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law

(5) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law

(6) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law

(7) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law

(8) Smelting or foundry operations legally **existing** on the date of passing of this By-law

(9) Solvent manufacturing legally **existing** on the date of passing of this By-law

(10) Tannery legally **existing** on the date of passing of this By-law

(11) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law

(12) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

Uses Not Permitted

6.2.4.65.2

(1) Asbestos Products Manufacturing

(2) Cement Manufacturing

(3) Gypsum or limestone processing and by-product manufacturing

(4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing

(5) Petroleum and coal refining and by-product manufacturing

(6) Phosphate or sulphur products and manufacturing

(7) Smelting or Foundry Operations

(8) Solvent Manufacturing

(9) Tannery

(10) Tar and Asphalt Manufacturing

(11) Motor Vehicle Wrecking Yard

Regulation

6.2.4.65.3 **Uses** contained in Clause 6.2.4.65.1(1) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law

6.2.4.66	Exception: C3-66	Map # 12, 13, 19, 23	By-law: 0229-2018

In a C3-66 zone the permitted **uses** and applicable regulations shall be as specified for a C3 zone except that the following **uses**/regulations shall apply:

Additional Permitted Uses

6.2.4.66.1

(1) **Garden Centre**

(2) E2 **uses** contained in Subsection 8.2.1 of this By-law, except:

(2.1) **Truck Terminal**

(2.2) **Waste Processing Station**

(2.3) **Waste Transfer Station**

(2.4) **Composting Facility**

(3) Asbestos products manufacturing legally **existing** on the date of passing of this By-law

(4) Cement manufacturing legally **existing** on the date of passing of this By-law

(5) Gypsum or limestone processing and by-product manufacturing legally **existing** on the date of passing of this By-law

(6) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing legally **existing** on the date of passing of this By-law

(7) Petroleum and coal refining and by-product manufacturing legally **existing** on the date of passing of this By-law

(8) Phosphate or sulphur products and manufacturing legally **existing** on the date of passing of this By-law

(9) Smelting or foundry operations legally **existing** on the date of passing of this By-law

(10) Solvent manufacturing legally **existing** on the date of passing of this By-law

(11) Tannery legally **existing** on the date of passing of this By-law

(12) Tar and asphalt manufacturing legally **existing** on the date of passing of this By-law

(13) Motor vehicle wrecking yard legally **existing** on the date of passing of this By-law

Uses Not Permitted

6.2.4.66.2

(1) Asbestos Products Manufacturing

(2) Cement Manufacturing

(3) Gypsum or limestone processing and by-product manufacturing

(4) Oil based paints, oil based coatings, solvent based adhesives and resin, and natural or synthetic rubber manufacturing

(5) Petroleum and coal refining and by-product manufacturing

(6) Phosphate or sulphur products and manufacturing

(7) Smelting or Foundry Operations

(8) Solvent Manufacturing

(9) Tannery

(10) Tar and Asphalt Manufacturing

(11) Motor Vehicle Wrecking Yard

Regulation

6.2.4.66.3 **Uses** contained in Clauses 6.2.4.66(1) and 6.2.4.66(2) of this Exception shall comply with the C3 zone regulations contained in Subsection 6.2.1 of this By-law